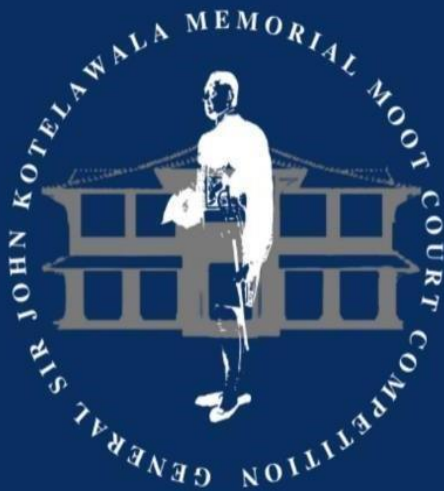




CASE BRIEF
FOR THE
GENERAL SIR JOHN
KOTELAWALA MEMORIAL
MOOT COMPETITION

2024





CASE BRIEF

Instructions to Participants at the General Sir John Kotelawala Memorial Moot Court Competition 2024

Disclaimer:

The following Case Brief is based on a pending appeal before the Supreme Court of Sri Lanka. The Case Brief contains selected positions and a specific number of witnesses for the purpose of the KDU Memorial Moot Competition in 2024. The characters and certain events in the Case Brief are all fictional in nature.

Participants are required to keep in mind that the following Case Brief contains a direct translation of the original brief, and that all such contents should be interpreted in light of this fact. (e.g. Witness Statements, Post-Mortem Reports etc.)

Participants are also informed that the original brief shall not be released to the participants under any circumstances.

Instructions on the Moot:

1. Participants are required to formulate their own grounds of appeal to be argued in the forum of the Court of Appeal; against (representing Accused-Appellant) and in favour (representing Plaintiff-Respondent) of the High Court Judgement, based on the contents of the Brief.
2. Participants may submit clarifications based on the Brief in the manner and before such deadlines stipulated in the Rules and Regulations of the Competition in 2024 and the Tentative Timeline.
3. The following Brief contains:
 - a) The Indictment
 - b) Judgement of the High Court and Allocutus
 - c) Evidence of Five (05) Witnesses
 - d) Dock Statement
 - e) Post-Mortem Report
 - f) Confession



The Democratic Socialist Republic of Sri Lanka
Vs
Abeykoon Mudiyanseelage Kalu Banda



INDICTMENT

IN THE PROVINCIAL HIGH COURT OF ANURADHAPURA

The Democratic Socialist Republic of Sri Lanka

Vs

Abeykoon Mudiyanseelage Kalu Banda

- 01. During the period which commenced on the 1st of March and concluded on the 31st of March, in the year 2003, within the jurisdiction of this Court, in the area of Pemaduwa, committing the offense of murder punishable under section 296 of the Penal Code by causing the death of an individual named Subasinghe Herath Mudiyanseelage Podi Menike.**
- 02. While knowing the murder of Subasinghe Herath Mudiyanseelage Podi Menike, or having had sufficient reason to believe of the occurrence of such; at the time, place, and act as mentioned in the aforementioned charge, with the intention to avoid being punished by law, taking steps to hide the dead body of Subasinghe Herath Mudiyanseelage Podi Menike which is a punishable offense under section 198 of the Penal Code.**

On the 12nd of March 2012

State Counsel



List of Productions

1. Post-Mortem Report
2. Confession made by the accused to the Magistrate on 19/09/2003

List of Witnesses

1. Herath Mudiyanseelage Ran Manike - Ralapanawa Colony, Nochchiyagama.
2. Jayatilleke Mudiyanseelage Madduma Menike - Aliwanguwa, Pemaduwa
3. Dr. Rajeeva Polonowita - No. 600/L, Palamthuna Para, Matale
4. Hon. Merrill Samarakone - No. 263/52, Makulam Road, Ampara
5. Police Officer Shaminda Kekirawa - No. 24 Weli Para, Benthota



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 15.12.2016

JUDGEMENT

As mentioned below the accused of this case has been charged with the following offences.

During the period which commenced from the 1st day of March in the year 2003 and concluded on the 31st day of March in the year 2003, in the locality of Paymaduwa which is located within the jurisdiction of this Court, committing the offense of murder by causing the death of Subasinghe Herath Mudiyanseelage Podi Menike, which is punishable under to section 296 of the Penal Code.

As aforementioned, in the said time, place, and act while possessing the knowledge of the murder of Subasinghe Herath Mudiyanseelage Podi Menike with sufficient reason and facts to believe that such a death has occurred, with the intention of avoiding penal consequences, taking steps to hide the body of the said deceased, Subasinghe Herath Mudiyanseelage Podi Menike which is a punishable offense under section 198 of the Penal Code.

On behalf of the Plaintiff the five (5) witnesses namely, Herath Mudiyanseelage Ran Manike, Jayatilleke Mudiyanseelage Madduma Menike, Dr. Rajeewa Polonowita, Hon. Merrill Samarakone, and Police Officer Shaminda Kekirawa have testified before this Court. The accused was allowed to make a dock statement as his witness testimony.

The case of the Plaintiff was as follows. The accused is the husband of the deceased. Following a blow by the accused to the deceased which resulted in the loss of consciousness of the latter, the body of the deceased was buried by the accused. The body was buried approximately 3.7m away from the house at which the accused and the deceased resided. This incident occurred on



a day in March in the year 2003 wherein the body of the deceased was recovered and unearthed on 18.09.2003. On 19.09.2003, the accused had reported this crime to the then Magistrate of Anuradhapura.

A witness by the name Ran Manike, had testified that the deceased was her daughter, that the deceased was married to the accused, that the deceased had lived in cohabitation with another before she had married the accused, but after her marriage to the accused, the deceased had lived together with the accused in the locality of Mahawilachchiya, that they resided in a small house which was built of coconut branches, that the main family house of the accused was located in the close vicinity of this relevant house, that she got to know in the year 2003 that the deceased had gone missing after which she had visited the residence of the deceased in Mahawilachchiya and inquired from the accused where the deceased was to which the accused had responded by stating that the deceased had mentioned to him at around 12 AM that she was going to give birth to the child at the residence of the witness, that despite such statement the deceased never arrived at her place, that she complained to the Police Station at Mahawilachchiya, that she identified the body as her daughter when it was unearthed and recovered.

According to the witness testimony of Madduma Menike it is revealed that the accused is the brother of her husband and further revealed that following his marriage to the deceased they had lived in a temporary small house which was located approximately 100 or 200 meters away from the ancestral house of the accused, that she gathered knowledge related to the disappearance of the deceased and that she inquired from the accused about the deceased to which he had responded by stating that she had gone to give birth to their child, that she had last seen the deceased on a day in the month of March in the year 2003 when the deceased was preparing to bathe at a lake and that she was pregnant at that point of time.

The Post Mortem on the body of the deceased was conducted by a consultant specialist who had served in the Anuradhapura Base Hospital back then, named Dr. Rajeeva Polonowita. His testimony reveals that he had attended and was present when the body of the deceased was being recovered and unearthed on 18.09.2003, that it was unearthed as per his directions in the presence of the then Magistrate of Anuradhapura, and that the body was located approximately

1.6 m or 1.8 m below the surface, and that when soil and earth were removed when exhuming it was observed that the body was bent from her knees and the hip and had been crouched to the left side and that the tissues of the body were damaged and the body had been subject to dehydration. This witness further testified that he observed that the internal organs of the body had been destroyed to an extent to which they were no longer identifiable and that the flesh which had melted in the hip area had contained a skull, hand and as well as leg bones and due to such discovery, it could be concluded that the deceased was pregnant at the point of her death and that the foetus may have been 7 months of age. According to this witness, a tear injury of 6 cm x 2 cm was found on the head and the said injury displayed signs of being bruised despite the skull not being fractured. Furthermore, the same witness has observed that worms or larval cells were not found on this body which usually results from flies laying eggs on a dead body, concluding that before flies had the ability to lay eggs on the body, it had been buried. He further testified that the head injury may have been caused by a long blunt weapon such as a batten and that without an external fracture of the skull such a blow is capable of damaging nerves in the brain that may result in losing consciousness. Dr. Polonowita in this witness statement has further testified that his opinion is that the cause of death of the deceased was suffocation resulting from being buried alive and that deducing by the head injury she had simply lost consciousness by the blow to the head and during such period of unconsciousness she had been buried alive and that under usual circumstances when such an unconscious individual is buried alive within 10 minutes the death of the individual may occur and that within a half an hour after the blow to the head, the deceased had been buried and that within the period commencing from the 01.03.2003 to 31.03.2003, this death may have taken place. On several occasions following the exhumation of the body, this doctor has examined this body and subjected it to an X-ray test as well. This doctor has further testified that after conducting many tests, the post-mortem was concluded on 08.05.2005 which was the date he had mentioned on the Post Mortem Report that has been marked as P1, as the date of the post-mortem.

On 2003.03.19, the accused gave a confession to the Magistrate of the Anuradhapura Courts, Hon. Merrill Samarakone under Section 127 of the Criminal Procedure Code. The learned Magistrate, Hon. Merrill Samarakone, in his testimony, stated that when he was serving as the Magistrate of Anuradhapura, he recorded the confession of the accused. In his testimony he

stated, that the accused was presented before him on 2003.09.18, that the accused stated to him at that moment that he wished to make a confession, that he duly explained to the accused that a confession made can be used against him in Court, that he informed the accused that he should carefully consider this before making such a confession, and that he instructed that the accused be remanded until 2003.09.19. He further gave evidence stating; that the prison officers produced the accused before him at 9.30 A.M on 2003.09.19 in his office, and that at this moment the Magistrate, a stenographer, and the accused were the only persons present in the office. He further stated; that he asked the accused why he decided to make this confession, that whether he made a confession or not he would not be handed back over to the police, that he informed the accused that he should not expect any advantage or favour from the making of a confession, that he asked the accused whether this confession was being made under the influence, inducement or threat of the police or any other person, that the accused replied with a no, that he asked the accused whether any influence, inducement or threat was made from the prison, that the accused replied with a no, that the accused stated that he is making this confession as he was asked to tell the truth and that the police did not exert any influence, inducement or threat towards him, that he considered the confession to be made voluntarily based on the answers he got from the accused, and that as such, he recorded the confession, he read it over to the accused, and both he and the accused signed the confession.

This confession has been marked as P2. During the cross-examination, the witness stated in his replies that he gave 10 minutes in his office for the accused to consider and re-think whether he would make a confession, that he informed the accused on the previous day to re-think this matter, and that the accused had the previous night to do so. In response to the suggestion by the defence that the confession was made due to the inducement and threats made while under police custody, the witness stated that he did not feel such an occurrence.

According to the confession marked as P2, before the recording of the confession, the witness had questioned the accused at length. In reply to those questions, the accused had clearly stated that he was making this confession without any inducement, threat, or promise. When asked by the witness; “Why are you making a confession?”, the accused replied, “My heart tells me to do it”. Accordingly, it shows that the accused made this confession voluntarily. At the moment the accused made the confession, only the Magistrate and the Stenographer were present in the office. Accordingly, the accused had complete freedom at that moment to

disclose to the Magistrate if any individual had made a promise, inducement, or threat towards the accused.

It seems that he was at full liberty to inform the Magistrate if he was tempted or threatened. The Magistrate explained to the accused the possible legal consequences of making a criminal statement and the accused had the freedom to think again and again from the 2003.09.18 night to the 2003.09.19 evening, about whether to make a confession or not. After explaining the facts further, the Magistrate has given the accused an opportunity for it once again in his office. Considering the testimony of this witness, the questioning done by the witness to the accused before the recording of the confession, and the answers given by the accused as a whole, it is clear that the accused has made this confession voluntarily.

I will now consider the statement made by the accused from the dock. Subject to the deficiencies of not being subject to cross-examination and not being made on oath or affirmation, the statement made by the accused in the dock should also be considered as evidence. In his statement from the dock, it is stated that he was arrested by the police and asked where his wife was buried, he said that he did not know about it, and then he was imprisoned and handed over to the army police, he returned home after a few months, and that he was living in fear of his life. and that he was attacked by several people about a week after he returned from the army, he filed a complaint with the police and the incident with the group that attacked him was settled. He also said that on that same night he was captured by three people and taken into a lonely garden, and they threatened him to surrender to the police and to make a statement about the deceased and accept that it was his fault, therefore he surrendered to the police through a lawyer, and then he was taken near to his house, and then he was taken near the pit the next day evening, and the stones there were excavated, and each stone was evacuated by 18 people pulling a stone using ropes, and that he had counted the exact number, and that the Magistrate was also present at that place, and that the police threatened him to make a confession in front him, and the Magistrate explained several times that if he confessed, he could be convicted, and that he had nothing else to do other than accepting that that the offense was committed by him and that he is innocent.

Police Officer Shaminda Kekirawa has testified and stated that he was the Chief of Police of Mahavilachchi in 2003 and that he received an anonymous petition on 17.09.2003 regarding



the death of the deceased, he took the accused into custody on 17.09.2003 at around 18.00 hours and then at 18.50 hours that day, he went to the land where the accused house is located, and that he observed a newly filled pit near the accused's house and a part of a human hand while excavating the place. 18.09.2003 the Magistrate and the Forensic Medical Officer came to the spot, and during further excavation, broken stones were observed in the pit, the body was found 120 cm below the surface, the clothes on the body were discoloured, and the left hand of the deceased was buried under the body. The body of the deceased was not buried in the manner in which a body is usually buried, the body was buried at a distance of 3.7 meters from the house where the accused and the deceased lived, and the house of the accused's father was about 21 meters from that place. It was noted that the accused statements were recorded on 17.09.2003 at about 20.00 hrs. This witness has denied the allegations made by the accused that he assaulted and threatened the accused at the police station.

According to his statement from the dock, the accused has lodged a complaint with the police about the attack made by several people. But he did not complain to the police about the threat made by three people that night and according to them, he surrendered to the police. Why did the accused, who complained to the police about the attack on him at first, not complain to the police about the threat on him that night? If he did not commit this crime, why did he report the incident to the police without complaining to the police about the threat? The accused is completely silent on that. The accused further said that the police threatened him to make a confession before the Magistrate. But the accused did not inform that to the Magistrate. At the time of the accused's confession, only the Magistrate and Stenographer were present in the office of the Magistrate. Accordingly, if the accused was threatened by the police or any other person to make a confession, he had full freedom to notify the Magistrate. But the accused has not acted like that. In fact, the accused told the Magistrate that he was not threatened or influenced by anyone. Accordingly, I cannot accept the position taken by the statement made by the accused as true. Even though the accused has mentioned about "a pit" in his statement from the dock, has been scrupulously careful not to mention that it was the pit which had the deceased's body. It is truly shocking how he mentioned not one word about it. The accused has further said that people took part in digging out one stone in the pit and he counted that number exactly. It is impossible to believe that the accused who counted the exact number of people who helped to dig out one stone in the pit, did not see the body of the dead woman in the pit?

On the other hand, what was the need for the accused to have counted the number of people who helped to dig out the stone in the first place? By saying that, the accused tried to convince this court that the stone could not have been put into the pit by one person alone and therefore it was not done by the accused. However, it has been clearly revealed from the evidence of the prosecution that apart from the soil, only a few broken stones were observed in this pit. At the time of cross-examination on the witnesses regarding such large stone placed in the pit, the defence did not even suggest otherwise. Accordingly, I cannot accept as a fact that there was a large stone in that pit which required the strength of 18 people to extracted from the pit, as stated by accused. The accused's statement from the dock is that he does not know anything about how the deceased disappeared. Then why did the accused tell the two witnesses Ran Manike and Madduma Menike that the deceased went home to give birth to the baby. If the position of the accused is true, he should have told the above two witnesses that he did not know anything about the disappearance of the deceased. But the accused has not acted like that. Accordingly, it appears that what the accused said to the two above witnesses was false. According to the facts, the statement made by the accused is not credible and it seems to me that it is falsely fabricated to escape from liability. Accordingly, I completely reject the statement made by the accused from the dock as it is false.

The evidence of the prosecution witnesses, which I have analysed in detail, has not been challenged in cross-examination to the extent of damaging credibility. Accordingly, I decide that the prosecution witnesses are credible witnesses who speak the truth. I have also analysed in detail the confession made by the accused before the Magistrate. Accordingly, I decide that the confession made at the magistrate was made without any inducement, threat, or promise and that the prosecution has proved beyond reasonable doubt that it was done voluntarily. By now I have rejected the statements made by the accused from the dock as per the before reasons.

The accused among other things, has mentioned in his confession to the Magistrate that one day they both got into a fight like before, and that here she was hit by his hand, and that she died from that blow. He further had stated that he had tried for a long time, but she did not regain her consciousness, and after that he put her in a pit because he was afraid and after that, started lying to everyone and started walking from place to place.

Analysing that portion of the statement made by the accused, it appears that the accused had hit the deceased once. The doctor's testimony clearly reveals that there was only a wound on the deceased head which was caused by an attack with a long blunt weapon like a batten. The accused's confession also showed that the blows inflicted by the accused made the deceased unconscious. The testimony of the doctor also clearly reveals that the deceased was hit on the head and that she could have been knocked unconscious instantly. Moreover, in the accused's confession it is further mentioned that he had put the unconscious woman in a pit and closed it. The doctor has mentioned the cause of death of the deceased in his testimony as a result of being buried while unconscious, after having been assaulted with a blunt weapon, thus leading to suffocation and the inability to breathe.

The above facts clearly show that with regard to the death of the woman, the facts mentioned in the confession are well corroborated by the medical evidence as well. It is also revealed that the body of the deceased was buried in the house where the deceased was residing 3.7 meters away, and the body was found more than 120 centimetres above the ground from the evidence of the prosecution. The facts mentioned by the accused in his confession regarding the manner in which the body was buried further confirmed this. According to the above facts, the facts mentioned by the accused in his confession are clear to be true.

The doctor's testimony reveals that the death of the deceased may have occurred between 2003.03.01 and 2003.03.31. The evidence of the witness Madduma Menike reveals that the last time she saw the deceased was in March 2003. Further from the evidence of witnesses Ran Manike and Madduma Menike it is revealed that after learning that the deceased was missing, they asked the accused about her, and that the accused told them that she had gone to Ran Manike's home to see the baby. However, according to Ran Manike's testimony, the deceased never came to her house. There is no doubt at this point that the deceased disappeared because the accused put her in the pit. In that case, the fact that the accused told the above two witnesses that the deceased went home to give birth to the baby is false. It is also clear that the accused had said that the deceased went home to give birth to the baby after he had buried her body.

It is accepted law that if the prosecution proves that the accused has said something wrong on an important matter, then the case of the prosecution will be established. Any untruth told by an accused is not sufficient for that and that untruth must have the following characteristics.

Firstly, the falsehood must be material. Secondly, the falsehood must be intentionally or knowingly told. Thirdly, the accused must have told the lie as a result of realizing his guilt and fearing of the truth. In other words, the accused told the lie because he knew that his fate would be determined if he revealed the truth about it. Indeed, if the prosecution proves that the accused intentionally told a lie about such an important matter, it not only strengthens the prosecution's case but also weakens the defence's case.

A careful analysis of the accused's falsehood that the deceased went home to give birth to the baby shows that it was related to an important matter, i.e., the death or disappearance of the deceased. The accused has also mentioned in his confession that he traversed the town lying to everyone he encountered about the disappearance of the deceased. It is clear from the above facts that the accused had the need to lie to those who questioned him, especially about the disappearance of the deceased, and he had no other choice but to cover up the horrible crime he had committed by lying. Accordingly, it is clear that the accused lied intentionally. On the other hand, the accused must have known very well that if the true situation of the deceased's death was revealed, it would determine his fate. The accused must have known that if the truth about the deceased was revealed at the time, he would surely get caught by the Law. It must have been very difficult for the accused to avoid the questioning by the deceased's mother, Ran Manike, about her daughter's disappearance. Accordingly, it seems to me that the accused resorted to lying, as a result of realizing of his guilt and fear for the truth. If so, as I mentioned above, this makes the case of the prosecution stronger.

Taking all the above observations as a whole, the only conclusion I can come to is that the accused is guilty. That situation is completely against the innocence of the accused and only agrees with his guilt. And now there is no doubt that this crime was committed by the accused himself and not by anyone else.

When the evidence of the prosecution is considered as a whole, it is clear that the deceased has become unconscious due to an attack made by the accused with a blunt weapon like a batten, and as a result of putting the unconscious deceased in the pit, her death has occurred due to inability to breathe. Can there be any idea other than the idea of causing her death in a person who buries an unconscious person? When taking into consideration the nature of the act committed by the accused, the cause of the death of the deceased and the deliberateness and



tactical nature, it is very clear that the accused had the intention of causing death to the deceased.

Next, I will consider the 2nd charge. It is clear from the above facts that the prosecution has proved that the body of the deceased was buried. Accordingly, the accused has arranged for the body of the deceased to disappear. The prosecution has also proved that the deceased became unconscious due to a blow by the accused. If so, it is clear that the body of the deceased was dumped by the accused knowing that a crime had been committed. On the other hand, the prosecution has also proven that the accused has intentionally gave false statements to the two witnesses Ran Manike and Madduma Menike regarding the disappearance of the deceased after this act. Accordingly, it seems that the accused put the dead woman's body into the pit with the intention of being covered by legal punishment. Considering as a wpit, the fact that the accused intentionally gave false information about the burial of the deceased and her disappearance to the two above-mentioned witnesses, it is clear that the accused has tried to convince others that he knows nothing about the death or disappearance of the deceased and that the accused has tried to bury the body of the deceased, as a means to avoid punishments for his crime. It also appears that the facts mentioned in the illustration given under Section 198 of the Penal Code and the facts of this case are very similar to each other.

Based on the above reasons, I decide that the prosecution has proved charges 1 and 2 beyond reasonable doubt. Accordingly, I convict the accused on the charges 1 and 2.



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016.12. 15

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

The Judgement was pronounced in open court.

The accused has been pronounced guilty for the 1st and 2nd Charges.

ALLOCUTUS

As per section 280 of the Code of Criminal Procedure Act, before pronouncing and sentencing to Death, the accused is asked if he has anything to be said.

The Accused states as follows;

Your Honour, when I was serving in the Army, my brother turned inhuman. At that point, to cure him, I left the camp and went home to ensure his recovery. He was successfully cured using black magic. Thereafter, my family members and others in our village said that I also had the same illness. In such instances, I didnt know what to tell or do. The police officers always said that I was a madman. It was not possible to recall what I had done or in what state I was. Despite having served as an Instructor at the Sri Lanka Army, after coming home I had been behaving as a madman. I didn't have money to get medical treatment even. Even to this very date, villagers think I'm insane and they still tell me that I have a mental disorder. Still, at times such a condition resurfaces. Even if I go to a Shrine, or engage in any such activity, I tend to get it again. I do not have a clear idea as to all of this that had happened. Villagers and Family members also just say that I'm under the influence of some sort of demonic possession. Therefore, I beg you My Lord at least if you will look into this condition of mine. The responsibility for my innocent life and everything I have is in your hands, My Lord!



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016. 05. 25

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

Starting Trial of this case.

Indictment is served on the accused by the Mudliyar upon reading.

Accused pleaded not guilty on all counts.

Calls prosecution witness No.1 **(PW1)** Name: Herath Mudiyanseelage Ran Manike. Address: Ralapanawa Colony, Nochchiyagama. Age: 53 years. Race and Religion: Sinhala Buddhist. Marital Status: Married. Name of Spouse: Subasinghe Mudiyanseelage Loku Banda. Declares under Oath.

Examination in Chief by the State Counsel:

Q: Witness, is your name Ran Manike?

A: Yes.

Q: Your husband's name is Subasinghe Mudiyanseelage Loku Banda?

A: Yes.

Q: How many children do you and Loku Banda have?

A: Three children.

Q: Have you gone to school?



A: No.

Q: Have you ever given evidence before a High Court?

A: No.

Q: You said you and Loku Banda have three children, right?

A: Yes.

Q: How many children all together?

A: Three children. But now only two.

Q: How many daughters do you have?

A: Two.

Q: Who is Subasinghe Herath Mudiyanseelage Podi Menike?

A: My Eldest Daughter.

Q: Whom did Podi Menike get married to?

A: She got married to Kalu Banda.

Q: Is he at the Court today?

A: Yes.

Q: Where is he?

A: (Witness identifies the accused)

Q: In which year did Podi Menike and the accused get married?

A: I cannot remember.

Q: Is Podi Menike alive now?

A: No.

Q: Do you remember in which year she died?

A: 2003



Q: When she died, was she married to this accused?

A: Yes.

Q: Can you tell me for how long Podi Menike and the accused was married when she died?

A: I cannot remember.

Q: Can you tell me if Podi Menike and the accused was married for a few months or a few years when she died?

A: A few years.

Q: They were married and lived together for a few years?

A: Yes. They were expecting a child also.

Q: Do you have your daughter's marriage certificate?

A: Yes

Q: Did you bring it today?

A: No.

Q: Do you not remember the year of marriage mentioned in the Marriage Certificate of your daughter?

A: I cannot remember.

Q: How did your daughter get married to the accused? through a proposal? Or was it a love marriage?

A: My youngest daughter Married from Wariyapola. Podi Menike went to live with her younger sister. That is when she saw and met Kalu Banda.

Q: Ran Menika I am asking if your daughter married through a proposal? Or was it a love marriage?

A: Love marriage.

Q: Did your daughter tell you that she was in a relationship with the accused?

A: No. She did not tell us.

Q: How did she get married?

A: My youngest daughters' mother-in-law had convinced them to get married.

Q: Your daughter died shortly after she was married right?

A: Yes.

Q: Did you oppose to this marriage?

A: We did not even know. We were told about it later.

Q: Where did this accuse work back then?

A: I do not know.

Q: Did he work in the Army?

A: That is what we heard.

Q: Your daughter told you?

A: My youngest daughter told me.

Q: Where do you live?

A: Ralapanawa Colony, Nochchiyagama

Q: You said your daughter married this accused, is that right?

A: Yes.

Q: Where did your eldest daughter live after she married the accused?

A: In Wilachchiya.

Q: Why did they go to live in Wilachchiya?

A: His home is there. He took her there.

Q: Did you see her dead body?

A: Yes.



Q: Where did you see it?

A: At Mahawilachchiya

Q: You mean your daughter went to live in Mahawilachchiya with the accused?

A: Yes.

Q: Who is Subasinghe Herath Mudiyansele Dingiri Menike?

A: My younger daughter

Q: You mentioned that the deceased was your eldest daughter.

A: Yes.

Q: What was she like?

A: Just like us.

Q: Was there anything special or different about your elder daughter as opposed to your other daughters?

A: No. She was married previously.

Q: Was that marriage legal?

A: They just lived together

Q: What happened to that marriage?

A: She had a baby from him as well. But the baby died.

Q: Where is that baby now?

A: That baby died at six months old. That baby had a pit in the heart.

Q: What was the name of the husband from the previous marriage?

A: Kumara Samarakkodi.

Q: How long was that previous marriage?

A: About 10 months.



Q: Do you know what happened to that marriage?

A: We don't know.

Q: Did Kumara Samarakkodi leave your daughter? Or did your daughter leave Kumara Samarakkodi?

A: He left my daughter.

Q: Do you know if there was a reason why he left your daughter like that?

A: No.

Q: Did your daughter tell you a reason why?

A: She told me that he was the one who left her.

Q: Does your daughter hit others when she gets angry?

A: No, she doesn't hit like that.

Q: Does your daughter fight with you?

A: No.

Q: Was there a toilet in your house those days?

A: Yes.

Q: Did your daughter display unusual behaviour when it came to the performance of excretory bodily functions?

A: The toilet was right in front of the main door.

Q: When your daughter got married to the accused, did she tell him that she was married to Kumara Samarakkodi previously?

A: She didn't tell us that she got married. We were told later.

Q: Did she at least mention later on that she was married previously?

A: Yes.

Q: Did you visit your daughter after she got married and moved to another house?



A: Yes

Q: From what you observed when you visited them, can you tell me how your daughter and the accused spent their family life?

A: They barely survived in a Cadjan house that they built.

Q: Do you know if they had problems in their family life?

A: No.

Q: Did your daughter not tell you?

A: No.

Q: Was your daughter happy with the accused those days?

A: Yes.

Q: How do you say that your daughter was carrying the child of the accused?

A: The due date for delivery was April 2nd. Our daughter told me so.

Q: After she married the accused, how many times did you visit her?

A: Only once.

Q: Why did you not visit again?

A: We were planning to visit for the Sinhala-Tamil New Year.

Q: After she married the accused, did she use to call you on the telephone?

A: No. they visited us.

Q: How many times?

A: Once.

Q: Did your daughter ever mention that the accused used to hit your daughter?

A: No.

Q: Did she tell you that there were problems between the both of them?



A: No.

Q: You mentioned that your daughter and the accused resided together.

A: Yes.

Q: Where did the father of the accused reside?

A: In Wilachchiya.

Q: Was it close by to where your daughter resided?

A: Yes. In the same Land

Q: Isn't that area called Pemaduwa.

A: Gulupeththaawa.

Q: They married and went there to live?

A: Yes

Q: What kind of a house did she live in?

A: Their ancestral house was there. They made a small house nearby and lived there.

Q: Your daughter and the accused lived together in this small house?

A: Yes.

Q: What kind of a house?

A: A Cadjan house.

Q: You said the ancestral house of the accused was nearby?

A: Yes

Q: Did you file a complaint to the Police regarding your daughter?

A: Yes. My youngest daughter had sent me a telegram mentioning that her sister was nowhere to be found. Then we went to the Police.

Q: Which daughter sent the telegram?



A: Subasinghe Herath Mudiyanseelage Dingiri Menike.

Q: When you received that telegram what did you do?

A: We went to Mahawilachchiya

Q: Why?

A: To see our daughter.

Q: Was your daughter residing with the accused?

A: Yes.

Q: Was the house there when you visited?

A: The house was not there. It was burnt down.

Q: So somehow the house to which your daughter and the accused went to live, was not there when you went to visit them again?

A: No. it was not there. It was burnt down. When we inquired where our daughter was, they asked us if she did not come to our house to deliver the baby.

Q: Who asked?

A: Kalu Banda

Q: Where was he?

A: At his place. We didn't go there. When we were there, it seemed like he was going to hit us. When Loku Akka and the rest of us were there, he said. "Why? Your daughter left at around midnight, with her Umbrella. She wanted to deliver the baby at your place."

Q: Which house did he say she left to?

A: Ralapanawa house.

Q: When did he say she left?

A: I cannot remember the date. He said she left at around midnight to deliver the baby at my place.



Q: Were any of your relatives in touch with your daughter those days? Was there someplace else other than your house where she could have gone to?

A: No.

Q: You all were the only people who could have taken her in?

A: Yes.

Q: Did your daughter come to your place at any time?

A: No

Q: Did the accused use vulgar language to address you all at that time?

A: Yes.

Q: How did he address you all before?

A: He used to call us Uncle and Aunty.

Q: So, when he used vulgar language to address you all that day did you not notice a change in his (accused) behaviour?

A: I noticed a change.

Q: You mentioned that the mannerisms of the accused changed after inquiring him about your daughter. What did you feel?

A: I thought he had chased her away. He was shouting at us and was ready to hit us.

Q: Did you all go to hit him?

A: No. we did not do anything.

Q: At the time was there anyone else present other than the accused?

A: His family members were there.

Q: Afterwards did you all check if your daughter actually went home?

A: Yes. Then we complained to the Police.

Q: What was the complaint about?



A: That our daughter was missing.

Q: What happened after that?

A: The Police came with us.

Q: Where?

A: To Kalu Banda's House.

Q: Was your daughter having an affair with another man at the time?

A: No.

Q: Did your daughter have enemies those days?

A: No.

Q: Were there any ongoing cases against her in any court of law?

A: No.

Q: Who else was with you at the time?

A: My elder sister. Loku Banda had left. Wariyapola akka was also there.

Q: Did you inquire about your daughter's whereabouts from the parents of the accused?

A: When we went to ask them, they came to fight with us.

Q: Who came to fight?

A: The mother and a few of his sisters.

Q: Did you not ask where your daughter's belongings were?

A: We asked. We asked where the baby was and if she got the baby. At times they tell us that the baby was born. Then where is the child? Then at least the clothes must be there.

Q: Did you ask Kalu Banda as well?

A: Yes.

Q: What did he say?



A: That she left at around 12 to go home to deliver the baby.

Q: Did you ask what happened to her clothes?

A: No.

Q: Where was the newly made house?

A: We went there to see. Afterwards, we informed the Police

Q: Your daughter was missing and on top of that the house was also burnt down. Did you ask why?

A: My elder sister asked.

Q: Didn't you ask?

A: No.

Q: Did you search for your daughter afterward?

A: Yes. We searched everywhere.

Q: Did you receive any information about your missing daughter from anyone?

A: We looked for her everywhere. We could not find her.

Q: Did you ask your daughter's neighbours If they saw her?

A: Yes.

Q: Did they say that she left to deliver the baby?

A: No, they did not say anything. They said they did not know.

Q: Did you then ask about your daughter from Kalu Banda?

A: No, I did not go to ask him again.

Q: Did you ask him just one time?

A: Yes.

Q: Did you see your daughter's dead body?



A: Yes.

Q: Do you remember the date that you saw the body?

A: No.

Q: Were you there when your daughter's body was being exhumed?

A: Yes.

Q: Where was it buried?

A: Near the house.

Q: What house?

A: Kalu Bandas ancestral house. Near the well.

Q: How far was that place from where she lived?

A: Not very far. It's right there.

Q: Was it the same house?

A: Yes.

Q: Do you remember who else was there when your daughter's body was being exhumed?

A: A lot of people were there. I didn't notice.

Q: How did they exhume your daughter's body?

A: So many people helped.

Q: At the time, did you identify the dead girl as your daughter's dead body?

A: Yes

Q: In what condition was your daughter's body in?

A: It was not even rotten.

Q: After the dead body was exhumed, how did you identify that it was your daughter's dead body?



A: From her teeth

Q: What else?

A: There was a birthmark in her body.

Q: What else?

A: That's it.

Q: Are you confident that the body was your daughter's dead body?

A: Yes

Q: After you identified the body did you give a statement to the police regarding the identification of the body?

A: Yes.

Q: When did you last see your daughter when she was alive?

A: I couldn't see her.

Q: Did you know that these two had issues between them?

A: No, we were not told.

Q: Did the parents of the accused know?

A: No.

Q: Did you give evidence about what happened to your daughter in the lower court and postmortem examination?

A: Yes.

End of Examination in Chief.

Cross Examination by the Counsel for the Accused:

Q: Was your daughter previously married to someone else before she got married to the accused?



A: Yes.

Q: For how long?

A: Around 3 years.

Q: You said they were together for 10 months during the examination in chief?

A: I may have forgotten.

Q: What have you forgotten? Whether or not they were together for 10 months?

A: They were together for about 10 months. Then he left her.

Q: Under oath, you have said that they were together for 10 months. So, is that untrue?

A: Yes.

Q: She was expecting a child, right?

A: Yes.

Q: She was married to him, right?

A: He was going to. But then he left her without marrying her.

Q: She was expecting a child, right? Up until then, had they been living together for 10 months?

A: Yes.

Q: Were you aware of the marriage?

A: No.

Q: So, they got married without your knowledge?

A: Yes

Q: After they got married, did you visit her occasionally?

A: Yes

Q: When you gave evidence before, you said they were happy?



A: Yes, they were happy.

Q: Who told you the story of her leaving the house at around 12 AM?

A: The accused told me that she left at 12.00 AM

Q: Kalu Banda's family scolded you, didn't they?

A: Yes, they did.

Q: Even the family members said that she left, is that right?

A: Yes.

Q: You mentioned that she had left in a three-wheeler?

A: Yes, I was told that she went into Raajangane in a threewheeler.

Q: You did not see your daughter get killed, did you?

A: No.

Q: Did you not suspect the family members regarding the death of your daughter?

A: No, we did not suspect the family members.

Q: Did you give evidence for the postmortem examination?

A: Yes.

Q: At the post-mortem examination did you say? "I suspect not only Kalu Banda, but everyone regarding this matter" Did you say that?

A: Yes.

Q: Were you telling the truth?

A: Yes, I was telling the truth

Q: If you had said, before this Honourable Court, that "I did not suspect the others" that statement is untrue, right?

A: They have a few people living with them in their house. The sisters of the accused tried to hit me.

Q: You suspected the others regarding this death, is that right?

A: Yes.

Q: But you do not know who killed your daughter, right?

A: No, I do not know.

Q: Where did the accused and your daughter live?

A: Our daughter lived in Mahawilachchiya after she got married.

Q: Their Ancestral house was there, right?

A: Yes.

Q: Where was your daughters dead body found?

A: From behind the Ancestral house.

End of Cross-Examination.

Re-Examination by the State Counsel:

Q: Witness, where did your daughter live before this incident?

A: Before this incident, in Wilachchiya, Gulukeththewa

Q: Was it in the house of the accused?

A: Yes.

Q: In the cross-examination, you were asked how far from the Ancestral house the body of your daughter was found. You were asked that question, right?

A: Yes.

Q: Before discovering your daughter's dead body, where did your daughter live, in this land?

A: There was a house at the back of the land, behind the ancestral house

Q: Did your daughter not live in the ancestral house?

A: No. not in the ancestral house.



Q: What kind of house was back there? Behind the ancestral house?

A: A Cadjun house.

Q: How far from the Cadjun house was the body of your daughter found?

A: Not so far.

Q: Show me how far, from where you are right now.

A: (Pointing about 50 Feet away)

Q: You are saying from the Cadjun house where the body was right?

A: Yes.

Q: When the body was found, was this Cadjan house still there?

A: No, it was not there.

Q: What had happened to the Cadjun House?

A: It was burnt. Nothing was there.

End of Re-Examination.



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016. 10. 13

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

Calls prosecution witness No. 2 **(PW2)**. Name: Jayasinghe Mudiyanseelage Madduma Manike. Address: Aliwanguwa, Pemaduwa. Age: 50 years Marital Status: Married. Husband Name: Abeykoon Mudiyanseelage Sudu Banda. Race and Religion: Sinhala Buddhist. Declares under oath.

Examination in Chief by State Counsel:

Q: Witness, what is your level of education?

A: Ordinary Level.

Q: Are you employed?

A: I am self-employed.

Q: What do you do?

A: Cattle management.

Q: What is your husband's name?

A: Abeykoon Mudiyanseelage Sudu Banda.

Q: Are you currently addressed at Aliwanguwa Pemaduwa?

A: Yes.

Q: For how long have you been living there?



A: 30 years.

Q: Who owns the land that you live in?

A: My husband.

Q: That means after your marriage you came to live in the said address?

A: Yes.

Q: Does your husband have any siblings?

A: Yes.

Q: How many siblings?

A: Nine (09)

Q: How many male siblings?

A: Five (05)

Q: Who is Abeykoon Mudiyanseelage Kalu Banda?

A: My husband's younger brother.

Q: If you see him again, can you identify him?

A: Yes.

Q: Is he present today before this Honourable Court?

A: Yes.

Q: Where is he?

A: (Identifies the accused)

Q: Where did this younger sibling of your husband live?

A: Gulupeththawa.

Q: Do you live in the same area?

A: No.



Q: Is he married?

A: Yes.

Q: Does he have children?

A: Yes, he has one child.

Q: When did the accused come to live in Gulupeththawa?

A: Even before I came to live here. Should be even before that.

Q: Whom did the accused get married to at first?

A: To a person named Podi Menike.

Q: When was that?

A: I do not remember the year. Around 2001/ 2002

Q: Where did they live after getting married?

A: At his mother's house.

Q: His mother's house meaning your husband's ancestral house?

A: Yes

Q: Where was that house?

A: In Gulupeththawa.

Q: Apart from the accused, were there any other siblings of your husband living in the vicinity of your husband's ancestral house?

A: Those days, yes. Now, there is no one. About 10 years ago there was one younger brother.

Q: After the accused married this Podi Menike did, they come to in live the ancestral house? or to some other house?

A: They lived here for some time. Afterward, they moved to another house.

Q: Where was that house?

A: In the same land.



Q: What kind of a house was that?

A: A small temporary house.

Q: They resided in that house?

A: Yes.

Q: For how long did they reside in that house?

A: I do not remember exactly. They lived for a long time. I do not remember the dates.

Q: What was their family life like?

A: There were a few problems.

Q: What kind of problems?

A: They used to fight. I do not know what kind of fights. I just know they used to fight.

Q: You said the house they built was temporary?

A: Yes.

Q: How far is it from that temporary house to the ancestral house?

A: A small distance. Around 100 or 200 meters.

Q: Who lived in the ancestral house?

A: Mother, father, and the younger sister.

Q: Was there anyone else living in the same land as the ancestral house apart from the accused?

A: One of my husband's younger brothers lived there.

Q: Where did he live?

A: He built a house on the same land and lived there.

Q: Where about in this land did this other brother live?

A: Somewhere near Kalu Bandas' house.



Q: How far is that house from the ancestral house

A: Around 200 or 300 meters away.

Q: Did Podi Menike continue to live in that house?

A: Yes.

Q: Subsequently, did you give a statement to the Police regarding her?

A: Yes.

Q: What was that statement regarding?

A: Her parents came looking for her saying that she was missing. I also went to that house at that time. I went along with our elder sister. Once we went there, we found out that she was missing.

Q: From whom did you find out that she was missing?

A: From our elder sister.

Q: What is this elder sister's name?

A: Gunawathie.

Q: To whose house did you say you went to?

A: To my mother-in-law's house. Our ancestral house

Q: What was the reason you went to the Ancestral house in the first place?

A: Podi Menike 's mother, father and my sister had come in search of Podi Menike because apparently, she was missing. At that time, my sister came to my house. She informed me that Podi Menike had left for her ancestral home to deliver the baby but she had not really gone there. Then, I was also surprised.

Q: Why did you get surprised when you got to know that Podi Menike had left to deliver the baby?

A: Because there was no one at home.

Q: Were you aware that Podi Menike had left to deliver the child?



A: When I met our younger brother, I asked “Where is Podi Menike? Why is she nowhere to be seen?” He told me that she left for her ancestral home to deliver the baby.

Q: Who do you mean by younger brother?

A: Kalu Banda.

Q: Did you believe that story that Kalu Banda said?

A: Yes.

Q: Then what happened?

A: Then her parents came looking for her and I was surprised to know that she never went to her ancestral home.

Q: Afterwards, when did you ask the accused where Podi Menike was?

A: I do not remember a date. I asked him when I met him on the road once. I do not remember the date.

Q: What was the reason you asked such a question?

A: Because Podi Menike was nowhere to be seen.

Q: For how long was she missing?

A: For a very short period.

Inquiries by the Court:

Q: You said you asked the accused where Podi Menike was? What did the accused say then?

A: Then he told me that she had gone home to deliver the baby.

Continuation of Examination in Chief:

Q: After Podi Menike 's parents lodged a complaint, did you give a statement to the Police?

A: Yes.



Q: The accused told you that Podi Menike had left for her ancestral home to deliver the baby.

A: Yes.

Q: Had you noticed then that Podi Menike was pregnant?

A: Yes. It was very evident that she was pregnant.

Q: You had been pregnant before that?

A: Yes.

Q: That is how you confirmed that she was pregnant?

A: Yes.

Q: That is how you admitted the fact that she was pregnant?

A: Yes.

Q: Did the police investigate Podi Menike 's disappearance?

A: Yes.

Q: Were they able to find Podi Menike?

A: No, they could not.

Q: Did you get any information regarding Podi Menike at any time afterward?

A: No.

Q: That means, by then you knew what had happened to Podi Menike?

A: We did not know anything properly yet.

Q: Was Podi Menike alive by this time?

A: We got to know that she was not alive.

Q: From where did you receive that information?

A: When I went to the Police.

Q: Did the Police call you to the station?



A: We were asked to come to the Police station to give statements. Then the police informed us of what had happened to Podi Menike and asked us what we knew about it. Other than that, I do not know anything else.

Q: Did the police tell you that Podi Menike had died in this manner?

A: Yes

Q: The police told you that Podi Menike had died?

A: Yes.

Q: Did you see Podi Menike 's Body?

A: No.

Q: Did you attend her funeral?

A: No.

Q: The Police called you and said Podi Menike had died?

A: Yes.

Q: After this incident did you visit the land in which your mother-in-law resided?

A: No.

Q: How many statements did you give the police regarding this matter?

A: Only once.

Q: Did you give evidence at the Magistrate's Court?

A: Yes.

Q: Do you remember in which year Podi Menike went missing?

A:2003

Q: When did you last see Podi Menike in 2003?

A: If I remember correctly, around March. I do not remember the exact date.

Q: Where did you meet her?



A: Near the well.

Q: Did you talk to her?

A: Yes. I asked her why she was having a bath so late into the day.

Q: Was she having a bath at the time?

A: She was about to have a bath.

End of Examination in Chief.

Cross Examination by the Counsel for the Accused:

Q: You said that the accused and Podi Menike used to fight?

A: Yes.

Q: Have you seen them fight?

A: No. I did not see it.

Q: If you had not seen it, was that information something that you heard from someone else?

A: Yes.

End of Cross Examination.

Re-Examination by State Counsel:

State Counsel states that there are no further questions.

End of Re-Examination.



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016. 10. 13

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

Calls prosecution witness No. 03 **(PW3)**. Name: Rajeewa Polonowita. Aged: 57 years. Residential Address: No. 600/L, Palamthuna Para, Matale. Occupation: Specialist Forensic Officer, District General Hospital, Matale. Race and Religion: Sinhala Buddhist. Declares under oath.

Evidence in Chief by the State Counsel:

Q: Witness, in which year did you join the medical profession as a doctor?

A: I first started training as an intern on September 15, 1989. I have been working in the permanent service of the Department of Health since September 18.

Q: From where did you get your initial Qualifications to work as a doctor?

A: As a basic Qualification, the first medical degree was obtained from the Menitsa University of the Union Government of Ukraine of the Union of Soviet Socialist Republics.

Q: After you became a doctor, have you done special studies in forensic science?

A: I have been engaged full-time in forensic medicine since September 1995. Meanwhile, I started studying a post-graduate course in forensic science at the Post-Medical Institute of Medical Sciences at the University of Colombo. I passed the Post Graduate Diploma in Forensic Science in July 1996 and the MD in Forensic Science in September 1998. After that, I followed a one-year training course at the Department of Forensic Medicine at Glasgow



University, Scotland, Great Britain, and have worked as a staff physician and forensic physician in Sri Lanka since September 24, 1999. Since then, I have been working as a consultant judicial officer in the Department of Health.

Q: How many forensic reports have you prepared so far?

A: About 6,000 post-mortem examinations have been done. About 12,000 forensic tests have been done, and a large number of them have been submitted to the court.

Q: Has evidence been given in court regarding the prepared forensic reports?

A: Yes

Q: Witness, which hospital were you attached to in the year 2003?

A: I have been employed as a specialist at Anuradhapura General Hospital since 2003.

Q: During your tenure at Anuradhapura General Hospital, were you involved in any postmortem investigations pertaining to an individual identified as Podi Menike?

A: On September 18, 2003, I was presented with an order from Hon. Merrill Samarakone, the Magistrate of Anuradhapura at the time, by the police. A resident of Vilachchi Police Domain No. 63, Gulupettawa, Pemaduwa, a person named Podi Menike, was mysteriously killed and buried on that land. As the dead body is to be exhumed on September 18, 2003, I was informed to come to the place where the dead body will be exhumed on that day, and I participated in the exhumation of this dead body on September 18, 2003, along with the Anuradhapura Magistrate.

Q: In the year 2003?

A: Yes

Q: Witness, you said that on September 18, 2003, you were involved in the duties related to exhuming the body?

A: Yes

Q: What time did you go to this place?

A: No notes have been taken concerning the precise time.

Q: Are there any medical records related to the exhumation of the body at that place?

A: Body recovery is a recognized aspect of the medical profession. When an illegally buried or mysteriously interred corpse is exhumed, precise records of its location can be obtained. I was instructed to supervise the autopsy on that particular day. In accordance with this, police officers and other personnel were utilized to exhume the corpse under my guidance before the Magistrate.

Q: After discovering the location of such a body, what preliminary procedures must be carried out prior to its exhumation?

A: First, in this process, the police report the suspicious location discovered during their investigation to the Honourable Magistrate. After that, it should be found first whether there is a pit in that suspicious place or not. The method used to find out whether there is a pit or not is to observe the pattern of grass and plant parts growing on that surface. If a pit has been cut recently, there is a difference in the area: To identify the difference, the first thing to do is to remove a thin layer of about two or three centimetres of soil over that area: As soon as this is done, the boundary of the edge of the pit that has been cut and filled again can be seen. That means that the boundary of the cut pit can be seen as separated from the uncut ground. In that way, according to my instructions, the police officers deployed workers to scrape and clean the surface and find the limit of the pit. After finding that, select a fixed building or tree on that land and measure and mark the distance from there to the place of this pit. Then, using a compass, locate the north of that location and draw a line from north to south. Following that, a specific elevation is determined and documented from the ground level in a fixed location (typically a large tree) at a predetermined height. After noting that height, mark a specific horizontal height with a line through the location of this pit. First, we start digging around the outside of the pit and then slowly remove the soil on top of it until the corpse emerges, but without taking the corpse out of the pit. After recovering the corpse, the height of the corpse is measured and recorded from the line drawn horizontally above. The height of the dead body is recorded by using several different places on the corpse. For example, the positions of the top of the head, chin, nose, shoulder, elbow, and buttocks are measured and recorded. Then the measurement we get is higher than the actual depth at ground level by a certain amount. It means that the depth of the corpse is calculated from the ground level by subtracting the

measured depth from the actual depth obtained. But when we see the different positions of different parts of the body, we can tell in what way the corpse is buried. For example, in a dead body that is usually buried, we know that places like the nose, chin, forehead, and nostrils are at the top level, and the heel and the back of the elbows are at the bottom. Then, when we take that measurement, we understand that this dead body is placed upwards, which is a normal burial. If it is placed downward, the depth of the nose is greater than the depth of the head. Accordingly, we took measurements in this way and determined the position of the dead body inside this pit. I have not taken any notes regarding the recovery of the dead body. Because the police and the Honourable Magistrate took those notes. I guided them to conduct the investigation.

Q: Were you present when the body was being recovered, witness?

A: Yes. Not only did I observe the body being recovered, but I myself was in the pit when it was recovered.

Q: How was the position of the body inside that pit?

A: The body was bent at the knees and hips and just curled up. Which means that the body was curled up close to the heels and buttocks. The hands were rolled up and placed inside the pit after being rolled up into a small ball. I remember that there was something like a cloth over the dead body. That means that the dead body may have been wrapped in this cloth. The dead body was curled up in that way.

Q: From the way you observed the dead body at that time, were you able to identify whether it was a female or a male dead body?

A: Not identified at that time. But later, when the body was brought to the morgue, it was identified as a female body.

Q: What observations did you make on the body when it was found?

A: I observed the position of different parts of the body. Accordingly, I noticed that the body was located in the left angle. It means that the two hands were curled up and turned to the left. That means the left side of the dead body was buried. The left is below, and the right is above. The elbow of the right hand was raised by the side of the head. The left side is buried deeper

than that. The right knee was also at a higher level. Overall, the dead body was inside the pit as if it was bent to the left side.

Q: Did you observe the physical appearance of this body at that time?

A: At that time, no observation was made of it. Subsequently, the dead body was taken safely outside from the pit, packed, sealed, and handed over to the police with the order of the Magistrate to transport it to the mortuary. The autopsy was conducted only after the body was brought and handed over by the police.

Q: When was this body delivered?

A: Brought the same day. On September 18 2003, the police officers brought the body to the mortuary and handed over.

Q: When was the body examined at the mortuary?

A: That day, no inspection was conducted. Late in the evening, it was. Following that, it was examined at an imminent future date. Typically, the examination of such a decaying or aged corpse is essentially postponed for several days. This is due to the hospital's heavy workload. Anuradhapura Hospital is a medical facility renowned for its extensive daily autopsy operations. Every day, approximately four to five autopsies are performed. Therefore, time cannot be spent on such investigations on a day when there are dead bodies that need to be handed over to relatives. The reason is that it consumes a lot of time for this kind of work, so you have to wait for a while until there is an opportunity to conduct the test. The mortuary has refrigerators, if needed. However, this corpse was not stored in the refrigerator. Because the initial observation made during the initial day of the corpse examination was the desiccation of the soft tissues and muscles situated on the epidermis surface, they decomposed and dried up. An arid environment induced the mummification process. It appeared as desiccated as a dried fish. A degree of dryness was present in this organism. The mummies discovered in Egypt exhibit a similar arid Quality.

Q: Why is it not necessary to refrigerate?

A: Since the body was mummified, refrigeration is not necessary for such remains. Furthermore, Anuradhapura Hospital had been furnished with substandard refrigerators as early as 2003, resulting in a dire and disorderly situation concerning the refrigeration facilities

in the hospital's morgue. During the autopsy that followed, I performed an external inspection. Based on the facial features and body characteristics, it was evident that the deceased individual was a female who measured 5 feet 2 inches in length. The jaws had full teeth. But according to age, the last four teeth, that is, the last four molars at the tip of the jaw, had not fully erupted. It was desiccated and mostly fractured. The most crucial observation is that every internal organ of this organism was destroyed beyond recognition. But in the pelvic area of this body, i.e., in the hip area, very small pieces of bone were found between the places where the flesh melted. Accordingly, the conclusion we can reach is that this person was pregnant at the time of death. The child was of sufficient age to develop skeletal structure, indicating that it was not an immature embryo but rather a pregnancy that spanned a duration of approximately seven months. The bones of the seven-month-old expectant woman were located in the hip region of her body at the moment of her demise.

Q: According to those observations, is it necessary to obtain additional information prior to performing a post-mortem examination of a person with signs of desiccation?

A: Yes. An external examination revealed the presence of one head injury. A laceration was observed on the cranium. A visible tear could be observed in the desiccated epidermis. The blood in this approximately 6 cm by 2 cm wound had coagulated, and there were indications of blood flow around the cranium. Also present were indications of bruising. This injury occurred in the vicinity of the cranial bone on the right side of the skull. A laceration was observed on the lateral aspect of the cranium. However, no fracture was present in the underlying cranium. This incision was the only one beneath the dead body's parched exterior. Since the epidermis was dry, no other wounds were present. Because the skin was devoid of moisture, the deceased corpse did not exhibit any signs of animal bites. Another significant observation pertains to the fly larvae present within the deceased organism. Fly classification places them within the arthropod order. There are various life cycle periods for these creatures. A larval worm emerges from the ova: After consuming food, the worm transforms into a larva: The larva develops wings and exits the cell it has just entered. Typically, the flies are covered, revealing the dehydrated and lifeless large and small worms in the body. When the fly flies out of the cells, the parts of the cells are usually with the dead body. Nonetheless, no fly segments were discovered in this corpse. Flies come and lay their eggs after a person has died or is severely incapacitated. Flies have been observed depositing maggots and eggs in the wounds

of individuals confined to bed sores. Aside from that, however, flies are not laying eggs on the living human body. Following some period of death, they begin to produce eggs. After death, eggs are deposited two to three hours later. The worms require an additional three to four hours to emerge from the embryos. The most reasonable rationale for the nonexistence of these attributes is that the body was put into the pit before flies were accommodated within these organisms prior to their egg-laying. The flies were completely unable to locate this body under any conditions. Consequently, no evidence of insects was detected in this dead body.

Q: Did you say that you observed lacerations on the head?

A: Yes

Q: What are the ways such an injury can occur?

A: A strike with a blunt object may cause lacerations. It may be due to a collision with a blunt surface. A collision with a blunt surface may result in an assault, a tumble, or a bump into an object. However, there are instances in which a fall injury and an assault injury are not synonymous. As previously stated, the most superficial portion of the skull is typically struck in a fall; specifically, the cranial region sustains the injury. The parietal eminence refers to the pinnacle of the parietal cranium. On the parietal eminence, scratch marks develop in the event of a fall. On the contrary, in the event of a strike, a batten can hit the parietal eminence or somewhere else. That means that when a person falls, there may be an impenetrable place on the ground. Accordingly, this is only one factor that determines whether it is a fall or not. But there may be other factors. The wound on this woman's body was in the parietal region. But not on the parietal eminence. Consequently, there are more grounds for suspecting that it was a strike from an object, such as a stick, than a fall. There is another reason for that. There was a wound that was 6 cm long and 2 cm wide. That means a bit of a lengthy wound. Therefore, it is more likely that a batten caused such an injury.

Q: When such an injury occurs, what is the effect on the body if it is done with such a stick-like weapon?

A: A laceration of the skull may result from the impact of a batten with the head. An oblique blow to the cranium may also induce a spinning motion in the head. As a result, a moment of rotation is generated. As a result of this rotation, the brain's physical composition may undergo certain modifications. Due to its physical composition, the brain does not contain particularly

rigid tissue. There is a flexible, typically gelatinous tissue within the brain. When a rotational force is applied, the brain rotates around the axis of the head. When it spins, the jelly-like soft tissues are stratified separately. It is called lamination in physics. Like how the velocity of a stream increases as one progresses from the bank to the middle of the river, the brain exhibits varying speeds in the same way that a liquid fluid stratifies and separates into strata: While traversing those strata, nerve fibres may be severed during this cerebral movement. This is called a diffuse axonal injury. It results in extensive nerve damage. This type of blow can result in loss of consciousness due to the injury it causes to the nerves of the brain. This loss of consciousness is transient in nature. Eventually regaining consciousness, that individual can recover. The nerves have sustained a minor amount of partial injury as opposed to complete damage. A person in this condition recovers with certain symptoms, including migraines and temporary forgetfulness of trivial matters, upon regaining consciousness. However, an individual experiencing a diffuse axonal injury may occasionally encounter adverse effects while incapacitated. For instance, saliva in the mouth can accumulate and enter the airways during unconsciousness, resulting in airway obstruction and death. Otherwise, the airways may become obstructed, and the tongue may descend, resulting in fatality. If that does not occur, the individual can wake and walk.

Q: Are the injuries this woman sustained natural causes of death?

A: The laceration that was visible was limited to the epidermal surface, encompassing the outer cranium. On the epidermis, only a tear and a bruise were visible. A fracture was not present. Nonetheless, I was unable to examine the brain contained within it. The brain was entirely decomposed and disintegrated, resulting in its absence due to the decomposition of the corpse. As a result, only external injuries were detected in the body. There is no crack in the cranium. Internal brain damage is possible even in the absence of a cranium explosion. As I speculated, it could be a diffuse axonal injury. There is a chance of blood vessel rupture and subsequent bleeding. Given her pregnancy status at the time, it is possible that she was afflicted with additional medical conditions such as pregnancy toxicity and high blood pressure. Had she been carrying these conditions; this stroke could have resulted in intracranial haemorrhaging. But even though there were such opportunities, there was no brain to observe whether any of them materialized. Therefore, we are unable to comment further on the matter. Based on my observations of the injury, it appeared to be a minor one.

Q: Do the injuries you observed on the corpse therefore qualify as minor injuries?

A: Yes

Q: Accordingly, have you given a reason for the death of this person?

A: The cause of death has been disclosed Suffocation. In addition, the rationale I used to ascertain the cause of death is provided in my report. Accordingly, I have provided the facts under the general headings of Cause of Death and Other Relevant Opinions. There are signs of blunt-force trauma to the cranium. Due to the extensive decomposition of the internal organs, particularly the brain, the cause of death could not be ascertained. A hint of criminal activity can be seen when considering investigations of burial, i.e., secret concealment or secret disposal. Accordingly, I put forth two arguments that may constitute the immediate causes of the death. One is diffuse axonal damage-induced loss of consciousness, as previously stated. Death may ensue because of subsequent disabilities. This suggests that there are situations in which the concussion-related side effects of the attack can result in death. That's one argument. In the second argument, a person suffered a blunt object injury and lost consciousness. If the body was buried while still alive, the air supply to the region surrounding the nose was inadequate and restricted, and the pressure of an earthen heap accumulated on the body, resulting in chest congestion that obstructed respiration due to the absence of space for chest movements. Due to these two reasons, death can occur due to an inability to breathe. These two reasons are the most immediate causes of death. The chance of death from a concussion is very remote. In general, the duration of a concussion can be 4, 5, or 10 minutes; in the case of a concussion, it does not take at most half an hour to recover. There is very little room for the conclusion that the phlegm stuck and died in a short period of time. But if the body is put into the pit Quickly while unconscious, it will die due to respiratory deprivation caused by being buried under the soil.

Q: Does a loss of consciousness result from a concussion?

A: The primary symptoms of concussion are loss of consciousness. Concussions are defined scientifically as transient episodes of unconsciousness that ensue from a cranial trauma.

Q: Can an average person know whether a person in such a state of unconsciousness is alive or not?

A: An average individual can comprehend. Because even an individual lacking medical expertise has a general ability to identify if a person is dead, asleep, or unconscious. An unconscious person is gasping for breath. The chest moves. Stomach moves. Additionally, the body heats up. An examination of the pulse reveals that it is in an active state. Accordingly, the symptoms show that they are still alive when they are unconscious.

Q: Can an average person be capable of identifying it?

A: An average person is capable of identifying it. It means that if the drugs used to lose consciousness or other toxic substances are ingested, it will result in a diminished function of the heart. Consequently, the pulsation has ceased. This condition is not even diagnosable by a physician. When the heart is connected to the Equipment, its functionality is confirmed by the monitor. Similar circumstances might also transpire. However, such an event is inconceivable without even a single bone being fractured as a result of a batten strike, which typically only inflicts a 6 cm laceration.

Inquiries by the Court:

Q: According to your opinion, was this person alive or dead at the time of the burial?

A: A very serious question. The reason is that if this blow was inflicted on her body, there is no way she will die from that strike. She was, presumably, still alive. However, had she been put to death through a means other than caning, such as strangulation or suffocation, she would have died. However, since there was no remaining soft tissue in the body to identify such features, I cannot ascertain if this was accomplished.

Q: Do you believe it is impossible to determine with absolute certainty whether this individual was alive or deceased at the time of the burial?

A: I am required to provide an opinion considering the features that I have observed. Based on the observed injuries, it is more probable that she was conscious at the moment of burial. The wound measuring 2 cm in width and 6 cm in length on her cranium was not life-threatening. Therefore, in the absence of any additional injuries, it can be inferred that she was conscious at the moment of burial.

Q: Accordingly, is it your opinion that this person was alive at the time of her burial?



A: Yes

Q: How do you think the wound you observed on the head of this deceased woman could have been caused?

A: According to the characteristics of the wound, it is a wound caused by an attack with a long, blunt weapon like a batten.

Continuation of Examination in Chief:

Q: Witness, did you examine this body and prepare a post-mortem report in this regard?

A: Yes

Q: Before the post-mortem report was submitted, was an X-ray done on this person to see if there were any broken bones?

A: Yes

Q: When was the X-ray performed?

A: I have requested an X-ray examination on August 17, 2004. We got an appointment to send the dead body to the X-ray department on August 31, 2004, at 3 p.m. The dead body should be wrapped well and sent to the X-ray room under special conditions where the patients are not around.

Inquiries by the Court:

Q: In your opinion, what condition could she be in after the wound you observed on the head of this deceased woman?

A: She might immediately lose consciousness as a result of that impact.

Q: In your opinion, if this deceased woman were buried alive, what condition would she have been in at that time?

A: Probably she must have been unconscious at the time of the burial. There is some time to put soil in it. Should she regain consciousness and stand, she should be beaten to death. Given



the circumstances, the body will not be discovered in that state. We discovered the corpse in the position in which she was buried. It is possible that she must have put into the pit while she was unconscious.

Q: In the event that an individual was to be buried unconsciously, approximately how long would it take for her to die?

A: Respiration remains an essential process even after the soil has settled and compacted. The stomach and ribcage protrude. This process continues. This mobility capability has been lost. When that happens, the Quantity of oxygen will be lost within two to three minutes. After three to four minutes, respiration ceases because there is no more space for oxygen to enter. Dies after about 10 minutes.

Q: Can you elaborate on the duration of time following the decedent's demise that her burial took place?

A: It is not possible to say about a specific time. But due to the absence of flies on the body, it is my belief that it would have been buried within thirty minutes of the assault.

Q: When did you conduct the post-mortem examination on the remains of this deceased?

A: This examination was conducted on multiple occasions. The external inspection was conducted in the days following the initial delivery. Following that, X-rays were obtained. X-ray examinations are one thing. Also, inspections are neglected due to additional tasks. The definitive date for the examination and form completion is, therefore, August 17, 2004. The X-ray laboratory has been provided with the date of August 30, 2004. After that, for the last time, on October 8, 2005, Accordingly, between 18.09.2003 and 08.10.2005, the dead body was examined several times.

Q: Concerning the post-mortem examination, your report specifies October 8, 2005, as the date of completion. Does this correspond to the actual date the examination was completed?

A: The date of completion of the post-mortem examination.

Continuation of Examination in Chief:

Q: Which test number is included in the postmortem report that you have compiled?

A: An autopsy number has been mentioned as BR 1763/2003. It is written as 2005 while typing. It should be correct as of 2003. On each page, however, the post-mortem report is labelled PM 523 at the bottom.

(At this time, the witness disclosed that the number referenced in the postmortem report contained a typographical error. The witness made the correction in the witness box, after which his signature was affixed.)

Q: Which court has this post-mortem report been submitted to?

A: Anuradhapura Magistrate Court.

Q: On what date was it submitted?

A: When the case was called on November 23, 2005.

Q: What is the name mentioned on the postmortem report?

A: Podi Menike .

Q: Who requested this post-mortem report?

A: Honourable Merill Samarakone who was the Anuradhapura Magistrate at that time, gave a death inquiry order.

Q: At which place was the post-mortem conducted?

A: Anuradhapura General Hospital. At that time, it was a general hospital. A teaching hospital had not been established.

Q: Can you identify the post-mortem report that was prepared and submitted if you were to behold it?

A: Yes.

(The postmortem report was presented to the witness pursuant to court permission.)

Q: This is the report prepared and submitted by me. I recognize the report in the case file. Identify the signature and official seal on it.

(Postmortem report is marked P1)



Q: Have you submitted this post-mortem report subsequent to your thorough examination of the deceased body during the exhumation process and on numerous other occasions?

A: Yes.

Q: Did you observe any significant particulars pertaining to the time or date of this person's death?

A: I first observed the body on September 18, 2003, when I accompanied the Honourable Magistrate to retrieve it. Upon its transportation to the mortuary and subsequent examination within an exceptionally brief time span, the deceased specimen exhibited indications of collapse and convulsion. The onset of these postmortem symptoms can occur at any time. However, at least three to four months should pass. A demise that took place over three to four months in advance of September 18, 2003.

Q: Could this death have occurred between 01.03.2003 and 31.03.2003?

A: Maybe.

Q: Why do you say that?

A: Inferring from the state of the deceased's remains, it is possible to approximate that the incident occurred over three to four months. It has been over six months since the body was discovered, and it is now March 2003. Thus, such a date might be.

End of Examination in Chief.

Cross Examination by the Counsel for the Accused:

Q: Did you say that you received an order from the magistrate to recover the body?

A: Yes.

Q: What was mentioned in that order?

A: The magistrate's order was read.

Q: When was the order made?

A: On November 18, 2003. In the morning, the police brought and handed over the order that they would be excavated on the same day. Along with that, I went to the crime scene along with the magistrate.

Q: Did it mention that a woman was mysteriously murdered?

A: It was stated that the police in Wilachchi had found the dead body after it had been mysteriously buried.

Q: That implies you arrived at the location in accordance with the issued order to exhume the dead body that had been buried?

A: Yes. The magistrate had made such an order.

You claimed that the order mentioned that the police had discovered a dead body.

A: Yes.

Q: In the preliminary evidence, you stated that in the event that a deceased person is buried, the initial step is to discover a trace that the body was buried. Subsequently, you must determine whether a grave exists at the site of interment, and a scientific method exists for accomplishing this.

A: Yes. When we are informed that a suspicious place has been found where a dead body is buried, there is a scientific method to find that place.

Q: Were those theories used when finding out whether or not there was a pit to retrieve this dead body?

A: Our approach was guided by that theory. We arrived at that location, cleared the soil, identified the pit's perimeter, and then began to excavate it.

Q: Wasn't a part of that place excavated before you left?

A: No. It was not dug like that.

Q: Was the soil completely filled to the ground level?

A: The boundary of the opening is delineated by a circle, in its vicinity stands a kohoba tree, and in close proximity to that kohoba tree, there exists a specific location.

Q: Hadn't someplace been dug in the pit without that?

A: There is no such memory.

Q: Now you said that there was a skin laceration on the dead body?

A: Yes. There was a skin laceration on the head.

Q: Were the stones placed in the pit above the dead body? Or was there soil? Do you have any memories of that?

A: The dead body was located at a height of 1.6 meters by 1.8 meters above ground level, by almost 2 meters. Laborers and others removed the soil. I didn't keep a note about it, but as far as I can remember, I have a rough memory that there were some stones, like black stones, during the removal of the soil. No note was made in that regard. As an ordinary person, there is a memory.

Q: You said there was a skin laceration on the head?

A: Yes.

Q: Is it possible that the laceration occurred after death?

Q: No. My initial observations indicated that there were signs of bruising of the skin around the laceration and bleeding into the skin, which means that there were signs of coagulation into the soft tissue. It is definitely a sign of an injury while alive.

Q: Is there a possibility of such an injury occurring while unconscious?

A: Such an injury could be caused by such a strike.

Q: Is that type of injury usually likely to occur with a blunt weapon?

A: Yes.

Q: Can that type of injury usually occurs from hitting the edge of a wall or a high place? Is there any chance of that happening?

A: It is not possible to say with certainty in this regard about the direction of the injury. If a chance is suggested about it, then there is a possibility that such an injury can happen.

Q: Can slamming into the edge of a doorframe or other wall at high-speed result in this type of injury? Does that mean running and hitting your head against a wall is likely to cause an injury like this?

A: There are cases where small children run fast, fall unexpectedly, and get head injuries on walls or rocks. But it is hard to imagine a pregnant woman between the ages of 17 and 22 running at such a speed, falling as fast as this injury, and crashing into a wall in this way.

Q: Can loss of consciousness usually occur immediately after such an injury?

A: It can happen.

Q: Did you say that concussion usually remains for half an hour?

A: A concussion is defined as a condition in neurosurgery where there is an injury to the head. There is no need to have a bleeding wound; this can happen in the case of a blow to the head or a fall. Concussion refers to the condition of short-term loss of consciousness without visible injury to the brain after a collision with the head. Then, sometimes, we think it is a concussion as soon as we lose consciousness. For some, this is not a short-term situation. But some people lose consciousness like that and never regain consciousness. If there is an injury to the brain, you can die from a concussion without regaining consciousness. A concussion is a short-term loss of consciousness, followed by regaining consciousness. The situation ends in 10 to 15 minutes. If the brain was injured at the time, such a condition may continue. There is another case of concussion. In addition, if a vein also bursts, consciousness will be lost inside the skull, and consciousness will come back. When he regains consciousness after an hour and a half, the blood flows out due to the bursting of the veins in the brain, and due to the collection of the blood in the brain, the brain bursts again. Consequently, the person loses consciousness again. If so, that second chance is not a concussion. Concussion occurs only in the first case. This is an important and complex issue in neurology. If this is a condition of concussion, consciousness will come within half an hour. If it is only a concussion condition, there is a loss of consciousness, and consciousness will come back in half an hour.

Q: Are you unable to determine for sure whether this deceased woman had such a condition?



A: At the moment of my examination, this individual was found to be devoid of the cerebral cortex. Therefore, expressing any thoughts or opinions regarding it is challenging. The brain of this body was not left. It was dissolved and depleted.

Q: Witness, you said that usually during unconsciousness there is a possibility of death due to obstruction of the airways?

A: Yes

Q: Despite that, was it stated that the injuries seen on the head were not sufficient to cause death under normal circumstances?

A: The seriousness of injuries should be considered according to the provisions of Section 311 of the Penal Code. Accordingly, there were no signs of a serious injury in that wound.

Q: Do you mean that an average individual is capable of recognizing a state of general unconsciousness?

A: Even an ordinary person has the ability to identify whether that person is dead or not in such a situation.

Q: Is there a chance of this type of injury occurring with a regular palm strike to the head?

A: When a palm strikes the head, there is no chance of such lacerations happening to the cranium. But this type of injury can occur when the head hits a wall or a chair as a result of hitting the hand.

Q: In your opinion, is it usually quick to regain consciousness after a concussion?

A: That is not my opinion. In this way, when a person regains consciousness after a concussion, that person will be in a good state of consciousness to testify about the incident.

Q: According to that, can consciousness usually be regained within 4 to 10 minutes?

A: Yes.

Q: In any case, since those internal organs could not be examined, is it not possible to indicate a permanent cause of death?

A: Yes.



Q: According to the way the dead body was secretly hidden, did you mention two ways as the cause of death?

A: Two approximate reasons are mentioned in my report. Two things could have caused this death: being unconscious, suffering a concussion from a blunt weapon, like a stick, and concealing it in such a way.

End of Cross Examination.

Re-Examination by the State Counsel:

State Counsel states that there are no further questions.

End of Re-Examination.



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016. 10. 13

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

Calls prosecution witness No. 04 **(PW4)**. Name: Merril Dunstan Yatawatte Samarakoon. Aged: 49 years. Residential Address: No. 263/52, Makulam Road, Ampara. Occupation: Judge of the High Court in Ampara. Race and Religion: Sinhala Buddhist. Declares under oath.

Evidence in Chief by the State Counsel:

Q: Sir, you mentioned that you are a High Court Judge.

A: Yes.

Q: Sir, when did you join the Judicial service?

A: In the year 2002

Q: That was to which position?

A: As a Magistrate.

Q: For how long did you serve as a Magistrate, Sir?

A: Eight years as a Magistrate and thereafter seven years as a District Judge.

Q: As a Magistrate how many Courts have you served, Sir?

A: Elpitiya, Anuradhapura, Kandy and Mt. Lavinia.



Q: Sir, during your tenure as a Magistrate, have you recorded confessions under section 127 of the Criminal Procedure Code?

A: Yes. On many occasions.

Q: On how many occasions?

A: I can't remember the exact number of occasions. I have recorded them in other courts as well.

Q: Have you considered such statements as evidence?

A: I don't know about that. Once I received notice from the Courts of Balapitiya. When I went there, the accused admitted that he was guilty. Then there was no necessity to give evidence.

Q: Sir, during your tenure as a Magistrate, have you had any sort of allegations against you for recording statements under section 127 of the Criminal Procedure Code?

A: No.

Q: Sir, did you record a confession relevant to an individual named Abeykoon Mudiyansele Kalu Banda?

A: Yes.

Q: In relation to this person, on 18.09.2003 did the Police Station of Mahawilachchiya ask you, to issue an order, by way of a B report, to conduct a Postmortem on the deceased named Subasinghe Herath Mudiyansele Podi Menike?

A: Yes.

Q: If so, as an official duty, did you Sir get involved in the exhumation of the body of Subasinghe Herath Mudiyansele Podi Menike?

A: Yes.

Q: On which date was that?

A: 18.09.2003



Q: Sir, were you involved in the exhumation as a part of your official duties, that day?

A: Yes.

Q: By way of a B report did the Mahawilachchiya Police produce this suspect to you on 18.09.2003 at 7:00 PM?

A: Yes. I mentioned on the 09/18.

Q: What was the name of the suspect who was produced?

A: Abeykoon Mudiyanseelage Kalu Banda also known as Upali.

Q: When that suspect was produced to you, what did he state to you, Sir?

A: He wanted to make a confession. I informed him that it could be used as evidence against his case. Therefore, I told him to reconsider and informed the Prison officers to produce him to me on the next day which was 19.09.2003 through the Prisons Department.

Q: Accordingly, did the Mahawilachchiya Police produce him to you, Sir?

A: Yes. The Mahawilachchiya Police did produce him to me. I remanded him for one day and asked to produce him again on the 19th.

Q: At that moment, did you Sir explain the consequences of a confession to him?

A: Yes. I did explain.

Q: Did you order them to produce him to the Prisons Superintendent and to produce him to you on 19.09.2003?

A: Yes.

Q: Then, according to your order, did they produce the suspect to you on 19.09.2003?

A: Yes. They have produced. The record is available.

Q: To where did they produce the suspect?

A: To my official Magistrate's Chambers at the Anuradhapura Magistrates Court.

Q: At what time did they produce?



A: The time was 9:30.

Q: Did you order any individual to bring the suspect?

A: Prisons Jailor Wickremaratne was the Officer who produced him.

Q: After bringing the suspect to your room, what did Officer Wickremaratne do?

A: After he brought the suspect in, I asked him to leave and he left. I got the stenographer Ms. Weerasinghe to come and assist with the proceedings. She also had been there. Thereafter, the suspect, the stenographer, and myself remained in the Chambers and had recorded.

Q: When recording, was it only you, the stenographer, and the suspect who were there?

A: Yes.

Q: Are there doors to enter and exit your Chambers?

A: Yes.

Q: How many doors were there?

A: One.

Q: When recording the statements, was the door closed?

A: It was closed. Anyway, it is usually closed.

Q: Are there any windows?

A: Yes, there are windows.

Q: When recording statements, were the windows closed?

A: All of them were closed.

Q: Can someone from outside, see?

A: No can't see. There were curtains.

Q: Did you ask the accused for his name?

A: Yes.

Q: What did he mention?

A: I have asked, “What is your name?” The accused had responded by stating, “Abeykoon Mudiyanseelage Kalu Banda.”

Q: Did you Sir, ask him about this confession?

A: Yes.

Q: What was the answer he gave?

A: I asked if he was making it under duress. I explained to him the weight of a confession. I explained everything to him. I asked, “Why are you making a confession again?”. He answered by saying, “My mind is telling me.” Therefore, I felt like he was making the confession voluntarily and to hence record his confession.

Q: Did you Sir explain to him that even if he makes a confession or not, he will anyway be returned to the police?

A: Yes.

Q: Did you Sir explain to him that he cannot expect any advantage by making this confession?

A: Yes.

Q: Was it asked if the police or any party influenced, encouraged, or threatened him to make this confession?

A: I have recorded that. He answered, “No nothing like that happened.”

Q: Did you Sir, ask him about his period in which he was in custody?

A: In the questions, of course, nothing has been mentioned. The time at which he was produced to the police is mentioned in the B report by saying he is arrested and produced. Thereafter it was when he was produced to me only, I was told that he would make a confession. I haven’t otherwise specifically mentioned at what time the Police had arrested him.



Q: Sir you mentioned that after the first time the suspect was produced to you following his arrest, he was remanded.

A: Yes.

Q: It was through the Prisons, that the suspect is produced to you for the confession?

A: On the earlier day it was informed that he'll make a confession. Then I ordered him to be reproduced on 19.09.2003.

Q: Sir did you ask if the Prisons or any party has influenced, encouraged or threatened him?

A: I have asked, "Has the Prisons influenced you?" He has responded to all such questions by saying "No."

Q: Was it revealed that this suspect was in fear?

A: When I asked if he was in fear to make this statement, he responded "No." When I asked "Why were you in fear?" he responded, "I don't know". When I asked, "Did you get scared for no reason?" he had said "yes". I beg your pardon; from around 4.00 on 17.09.2003 until he was produced to me, I have recorded that he had been in the custody of the Police. I'm sorry I had forgotten that earlier.

Q: At that point did you ask the suspect again why he was making this confession?

A: Yes. I asked if he got scared when the police were interrogating him. He has responded by saying yes. I asked if that is why he made the confession, to which he responded by saying it was because he was asked to tell the truth. I have asked if they intimidated him. I have asked him again if the police, while interrogating him, threatened or influenced him and he said no. I have asked whether he can give evidence at his liberty, regardless of what the police say. He has said that he can and has provided a lengthy statement.

Q: Were you Sir, able to satisfy yourself that he had made a sincere confession?

A: According to the historical answer, yes, I was satisfied.

Q: Did you provide any further period for him to reconsider?

A: When he was produced to me first, I told him that he could think about it and reconsider until the next date. Therefore, he had time till the 19th morning to think. I had told him on the

earlier day before giving him the time of one day the gravity and consequences of a confession.

Q: Then, did you Sir contend that this confession was made not as a result of any promise or threat?

A: Yes.

Q: Then have you recorded the confession made by Abeykoon Mudiyanseelage Kalu Banda?

A: Yes.

Q: Did you explain that statement to the accused?

A: Yes, I did. I have recorded that I did.

Q: Then has the Suspect signed that statement?

A: Yes. He has signed as “Abeykoon”.

Q: Following this confession, have you Sir, placed your official seal and signed it?

A: Yes. This is my signature. This process has taken place from 9.30 to 10.30.

Q: If you see a confession recorded by you under section 127 of the Criminal Procedure Code, can you recognize it again?

A: Yes.

Q: Is this that confession?

A: Yes. This is the one.

(The relevant confession was marked as P2)

Q: Then have you Sir sealed it and handed over the said confession after it was made?

A: Yes.

Q: To whom did you hand over?

A: To the registrar.

Q: To the registrar of the Magistrate’s Court?



A: Yes.

Q: Will you be able to recognize the envelope in which you placed and sealed the confession when it was handed over to the registrar if you see it again?

A: Yes.

Q: Is that the relevant envelope?

A: Yes. It was written by myself hence it is my handwriting. There were two envelopes. One was inside the other.

(The envelope on which the Magistrate had written, was marked P3)

(The other envelope was marked P4)

Q: After recording this confession, to whose custody did you hand over the suspect?

A: Back to the Prisons Department. To the Jailor Wickremaratne who produced the suspect to me.

Q: If you see the suspect who made the relevant confession, is it possible for you to recognize him again?

A: Yes.

Q: Is he present in this Court today?

A: (Identifies the accused.)

End of Evidence in Chief.

Cross Examination by the Counsel for the Accused:

Q: Sir, can you state the date and time at which this confession was made?

A: Started on the 19.09.2003 at 9.30.

Q: When did the accused mention that he expects to make a confession?

A: On the day before this date.



Q: On the 18th at around 7 in the evening?

A: Yes.

Q: When he was produced by the Police Custody did, he mention that he wants to make a confession?

A: When he was produced from the Police, I told him to reconsider and I told him that once he makes a statement it could be used against him. I told him to think again and inform on the next day when he is produced.

Q: Did he say that he was making such a statement because the police asked him to tell the truth?

A: It has been recorded

Q: Can you Sir, state with certainty that the Police did influence this suspect to tell the truth?

A: I have asked him and recorded whether such a thing happened. In order to be content with what he said I asked him multiple times whether he was vigilantly answering. Many times, I have told him that this could be used against him and that there is no problem even if he doesn't make a confession. After mentioning multiple times to which he responded "No no" I recorded what he had to say.

Q: It has been recorded that it was because the police told him to tell the truth that he made the statement.

A: Yes.

Q: Do you have the ability to state with no doubt as to whether he was under the influence or threat while he was in police custody?

A: It is because I had such ability to state without a doubt, that I did record. Or else I wouldn't have recorded. That's my official duty.

Q: Is it not possible for you to say that after the accused made the statement the accused or his family was threatened by the police?

A: The fact as to whether the family members were threatened is none of my business. I questioned him if he was intimidated or if he is making this statement after he got intimidated

to which he had responded by denying and saying no. If there had been such an intimidation, it would have been noticed during the process of questioning him.

Q: Anyhow, the accused made the confession when he was directly produced from Police Custody right?

A: Yes.

Q: When it was said that confession will be made, he was told to make it on the next day, is it?

A: No not as such. It has been recorded that after reconsidering and voluntarily this confession is made. It has also been recorded that I have told it could be used against him. After clarifying to such an extent only did, I remand him. He had one entire night to reconsider. Likewise, the recording was made after providing so many opportunities.

Q: Has it been recorded that during the course of the confession, the accused was provided 10 minutes?

A: Yes. At 9.45 another ten minutes had been provided.

Q: Within that period, where did he stay?

A: I can't remember. Most probably within my Chambers itself.

Q: Can you accurately state where he was?

A: Cannot remember. Once produced to me, I don't hand him over back to the officers. As it is voluntary, I don't return his custody.

Q: It has been recorded that; this was said because he was told to tell the truth?

A: What I was told has been recorded. What's recorded is what he told.

Q: I suggest that this accused made such a statement as he was subject to influence or threat while he was in custody of the Police.

A: I didn't feel as such. Therefore, I didn't record like that.

End of Cross Examination.



Re-Examination by the State Counsel:

State Counsel states that there are no further questions.

End of Re-Examination.



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016. 10. 13

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

Calls prosecution witness No. 05 **(PW5)**. Name: Shaminda Kekirawa Aged: 46 years.
Residential Address: No. 24 Weli Para, Benthota. Occupation: Police Inspector. Race and
Religion: Sinhala Buddhist. Declares under oath.

Evidence in Chief by the State Counsel:

Q: How long has the witness been in the police service?

A: 24 years.

Q: In what rank did you join the police service?

A: Sub-Inspector.

Q: Which police station were you attached to in 2003?

A: I served as Station Commander of Mahavilacchiya Police Station.

Q: While serving at Mahavilacchiya did you work on a case relating to a death of a person named Subasinghe Herath Mudiyanseelage Podi Menike?

A: Yes.

Q: How did you get to know about this death at first?



A: I received information from an anonymous person. Then only we started our inquiries relating to the case.

Q: When did you get that information from that anonymous person?

A: 2003.09.17.

Q: According to that anonymous petition, what kind of crime was revealed to you?

A: It was a case of murder.

Q: Was it revealed about a suspect in that petition?

A: Yes.

Q: What was your course of action accordingly?

A: According to the information received, I left with the officers to the relevant place for investigation purposes and according to the information I received, the suspect, Abeykoon Mudiyanseelage Kalu Banda was arrested at Gulupethweva, Pemaduwa.

Q: When was that person arrested?

A: In the evening hours. At around 18.00.

Q: Where was the arrest made?

A: At Pemaduwa.

Q: Who did you go with to arrest this person?

A: Sub-Inspector Padmasiri who was on duty at the spot, Police Sergeant Wijedasa, Kumarasighe and Wickramaratne.

Q: That suspect was taken into custody on 17.09.2003 at 6.00 pm?

A: Yes.

Q: Where did you go after the arrest?

A: After the arrest, we went to Pemaduwa, Gulupethaweve where the woman was buried.

Q: What time did you go to that place?



A: At 18.50 hrs.

Q: Did you investigate who owns the place?

A: The suspect's house was also located on the land belonging to the arrested suspect's father.

Q: If you see the suspect, you have arrested again, can you find out?

A: Yes.

Q: Has he come to court today?

A: Yes.

Q: Where is he?

A: (Identifies the accused.)

Q: You mentioned that after the suspect was arrested, you went to that land for a few minutes?

A: Yes.

Q: Did you find anything after visiting the place?

A: Yes.

Q: What was discovered?

A: According to the information I received, there was a newly filled pit located near the house of this suspect. We started digging the place up.

Q: At what time did you start that digging?

A: At around 18.30 hours we started digging the place. At around 18.50 hours we found something suspected to be a hand of a murdered human body.

Q: Did you come to that place and note the time that the excavation was done at that place?

A: It was started at 18.30 hours. Investigation notes have started at 18.50 hours.

Q: Accordingly, how long did you take to arrive at this place after making the arrest?

A: Within 30 minutes.

Q: You said that the excavation work was done?



A: Yes.

Q: Did you see anything during the excavation?

Q: A part of a human hand was found. After that, the digging was stopped and the team of officers including Sub Inspector Padmasiri was deployed to protect the site. After that, the higher officials were informed about it and the court was informed.

Q: Which higher officials did you inform in this regard?

A: Assistant Superintendent of Police, Senior Superintendent of Police, Deputy Superintendent of Police and the Honourable Court were informed.

Q: You said that you found a suspected body part?

A: Yes.

Q: Who was there when the body parts were found?

A: There were officers who assisted in the investigation. The suspect was there.

Q: Were there other people there?

A: No outsiders were there.

Q: You mentioned that you informed the higher officials and the magistrate?

A: Yes.

Q: What course of action did you take after that?

A: After that, on 2003.09.18. in the morning at 9.20, the investigation started. At 9.35 on the same day, the Honourable Magistrate and the Forensic Medical Officer and staff arrived at the crime scene.

Q: When was the date?

A: 2003.09.18

Q: Now, at what time did the digging work start at this place?

A: The Honourable Magistrate arrived at around 9.30 in the morning and started the investigation at around 9.35 according to his orders.



Q: What did you observe during the excavation?

A: Stones were in the pit. It was suspected that it was removed from a well. It was closed by sand.

Q: Were those parts removed?

A: Yes.

Q: What did you see when you removed the parts?

A: At that time, a female dead body was found while excavating 120 centimetres deep.

Q: Have you made any notes regarding the condition of the body?

A: Yes.

Q: What were those?

A: The dress worn by the deceased was discoloured. The left hand of the dead body was under the body. The right hand side was seen.

Q: Was this body buried like a normal body?

A: No.

Q: How do you say that witness?

A: It was not buried in a natural way that bodies are buried. It was buried in a most un-natural way. The hairs were broken.

Q: Have you made notes regarding the place and land where this body was found?

A: Yes.

Q: Did you draw a rough plan of it?

A: Yes.

Q: You mentioned that this body was found in the land where the house where the accused resides in this case?

A: Yes.



Q: When you visited the place, did you observe how many houses there were on that land?

A: There was the house where the suspect resided. There was the house of his father Piyadasa. The dead body was buried at a distance of 3.70 meters from the house of the suspect was located in.

Q: You mentioned that this house which was 3.70 meters away was collapsed?

A: Yes.

Q: How exactly was it observed that it was a collapsed house?

A: All the clay soil had fallen on it. That's how we found out that it was a collapsed house.

Q: You mentioned that the body was buried 3.70 meters away from the house of the suspect?

A: Yes.

Q: How far was the house of Piyadasa from those excavations?

A: It was 21 meters away.

Q: In addition, another outsider has been mentioned with regards to a house on this land?

A: Yes.

Q: Whose is it?

A: Malin. It was 35.7 meters away.

Q: Apart from those houses, were there other houses on this land?

A: No.

Q: You mentioned that there was a group of people including the magistrate at the time of the excavation?

A: Yes.

Q: Where was the suspect at that time?

A: At the same place.

Q: What duty did you do after exhuming the body?



A: Police Inspector Padmasiri and Police Sergeant Wijedasa were also instructed to record all the evidence for further investigations as per the orders of the Honourable Magistrate, to present the suspect to the Forensic Medical Officer and to conduct the post-mortem as per the orders of the Magistrate.

Q: You said that you found the body on 17.09.2003?

A: Yes.

Q: When did the police first receive a complaint about this crime?

A: It was on a day in March. A complaint was received regarding a disappearance. Police Inspector Mr. Chandra investigated the matter. After that, Sub Inspector Jayaratne investigated this matter in July.

Q: Is it mentioned in the police books that the first complaint regarding this disappearance was made by Jayasena on 26.04.2003?

A: Yes.

Q: Is he alive now?

A: No.

Q: Do you have the original information book that mentions the complaint related to the disappearance of the deceased in this case?

A: Yes.

Q: Can you identify the notes from who recorded the relevant information in that original information book?

A: Yes, I can.

Q: When you worked at the Mahavilacchiya Police Station, did you know this officer?

A: Yes.

Q: If you see the statements recorded by him regarding the disappearance of Subasinghe Herath Mudiyanseelage Podi Menike, the deceased in this case, can you identify it?



A: Yes.

End of Examination in Chief.

Cross Examination by the Counsel for the Accused:

Q: When was this accused arrested?

A: 2003.09.17.

Q: What time was it?

A: Around 18.00 hrs.

Q: You said you got an anonymous tip?

A: Yes.

Q: When did you get that information?

A: That evening.

Q: How was the information received?

A: Obtained from an anonymous petition.

Q: According to that petition, this accused was arrested?

A: No.

Q: Was he arrested after the investigation?

A: Yes.

Q: What investigation did you do to arrest the accused?

A: The investigations were started according to the facts mentioned in the petition.

Inquiries from the Court:

Q: Was a statement of this accused recorded?

A: Was noted.



Q: When and what time?

A: On 17.09.2003 at about 20.00 hours.

Continuation of Cross Examination:

Q: According to the facts mentioned in the petition, is it correct to say that the accused was arrested?

A: No.

Q: Wasn't the suspect arrested based on the facts of the petition?

A: No.

Q: You submitted a B report to the Magistrate's Court on 18.09.2003, didn't you?

A: Yes.

Q: You have mentioned there that "On the basis of information from an anonymous letter that I received while conducting investigations in this regard, I arrested Abeykoon Mudiyanseelage Kalu Banda aka Upali, who was married to Subasinghe Herath Mudiyanseelage Podi Menike, on suspicion for questioning." Is that true?

A: Yes.

Q: Do you accept that the accused was arrested on the basis of anonymous information?

A: On suspicion.

Q: The accused was arrested based on an anonymous tip, right?

A: Was arrested on suspicion at that time.

Q: Did you arrest this suspect twice?

A: No.

Q: You arrested based on an anonymous tip, right?

A: Suspicion based on an anonymous tip



Q: You said earlier in the Honourable Court that you were arrested based on anonymous information, is that not true?

A: He was arrested on suspicion based on an anonymous tip.

Q: It is not true that the defendant was arrested on suspicion?

A: Arrest on suspicion is what I stated.

Q: You arrested once, right?

A: Yes.

Q: The arrest was based on an anonymous tip, right?

A: That's right.

Q: Now you said earlier that the accused was arrested based on an anonymous tip, isn't that a lie?

A: I have no answer.

Q: Based on the anonymous information, what time did you leave to check the place?

A: Left the place at 17.30 hours.

Q: After that, you found the place where the dead body was and did an excavation?

A: Yes.

Q: When was the excavation done?

A: Around 18.30 hours.

Q: What did you find when you did the excavation?

A: A female human body part.

Q: After discovering that the body was there, you did an excavation at that place, didn't you?

A: An excavation was done due to the suspicious location. After a human body was found, it was stopped.

Q: Before that, you did some excavations in that area, didn't you?



A: No.

Q: I suggest that you went with the Grama Niladhari and dug in that area first?

A: No.

Q: You arrested the accused and brought him to the police station, right?

A: He was brought there after initial investigation.

Q: Did you give evidence today and say that the accused was arrested at around 18.00 hours?

A: Yes.

Q: I suggest to you that the accused was arrested at around 3.00 pm before that?

A: I reject this.

Q: I suggest that when the accused was at the police station, a telephone call was received saying that the location of the dead body had been found?

A: I reject this.

Q: So accordingly, you'll found the location of the body?

A: No.

Q: However, are you sure that the accused was arrested at 18.00 hours?

A: Yes.

Q: What time did you record the accused's statement?

A: Around 20.00 hrs.

Q: I am suggesting to you that you took the accused to your police station and assaulted the accused?

A: I reject this.

Q: I suggest that the accused was threatened with assault?

A: Never did such a thing.



Q: I am saying that you told the accused by attacking and threatening him, to confess in front of the Honourable Magistrate that he committed this crime?

A: I strongly refuse and reject this.

Q: I suggest to you that the accused's parents and sister were threatened with arrest if he did not confess?

A: I reject this.

End of Cross Examination.

Re Examination by the State Counsel:

State counsel states that there are no further questions.

End of Re Examination.



Provincial High Court – North Central Province, Anuradhapura High Court

Before Hon. Ruwantha Karunanayake, Judge of the High Court Anuradhapura

Stenographer: Viduka Dharshana

Case No: HC 88/12

Date: 2016. 10. 13

Accused is Present.

Mr. Surangha Kolonarachchi, Attorney-at-Law appears for the Accused.

Mr. Viraj Hemawansa, State Counsel appears on behalf of the State.

The Counsel for the State, states that the case of the Prosecution will be closed.

The accused is ordered to present the defence. The options for the accused are explained as follows,

1. That the accused can go to the witness stand and testify, he can but will be cross examined if he does so.
2. That the accused can make a statement from the dock, and if he does so, he will not be subject to cross examination.
3. That the accused can call witnesses on his behalf if he wants to.
4. That the accused can remain silent without doing any of the above.

The Counsel for the Defence states that the accused will make a Statement from the Dock and no other witness will be called for the case of the Defence.

The Accused states the following from the Dock:

Your Honour, the police arrived and arrested me. Thereafter I was taken to a place where there was nobody. Then they assaulted me and asked where I buried my wife. At that point, I said that I didn't know anything as such. Afterward, I was taken to the police station and they put me in the cell. That night an anonymous telephone call was received which covered that I had buried my wife. Then someone from the police came up to me and threatened that he'd break

my bones and that through the Prisons I would be handed over to the Sri Lanka Army. Then I asked them not to hand me over to the army as my wife is nowhere to be found and until she is found not do so. Then I was told, “Your woman will be found when you go to the army, so you go, you are mad.” However much I said those officers didn’t believe me nor did they pay attention to me. Later I was imprisoned and handed over to the Military Police. They took me to four camps from one camp to another before I arrived at my final camp. It took a couple of months. Back then due to the Civil War just as we requested neither leave nor a pass was granted, Your Honour. As I had been marked absent, I was sent to the CO Sir and was inquired as to why I was absent and I was given a punishment of 28 days of full duty which was necessary for me to obtain a leave for a holiday, Your Honour. After I came back to my village, I tried to locate the whereabouts of my wife but failed to find anything, Your Honour. She was at times scared. She was constantly worried because the person to whom she was married earlier was not on good terms with her and he very often harassed her. She never told him before leaving and she believed that if he saw he would kill her.

She was mostly worried about this when we went to the Anuradhapura town together, Your Honour. She mentioned to me that he was a man in the Anuradhapura town by the name of Vinidu. In addition to that Your Honour, two other individuals who lived in the same village as I did have asked her to develop an extramarital relationship with them. In such instances, she had reprimanded them and scolded them in filth to which in return they too had threatened and shouted at her in filth. She was worried about this as well. Sometimes she behaves in an inhuman way. I have come across nights when she had hidden various shopping bags which contained her faecal matter in certain places within the house. Sometimes she used to defecate in the garden. She is not in a sane state of mind at such times. Sometimes she gets annoyed all of a sudden. Somewhere after a week from coming home from the army, a few villagers assaulted me to a severe extent, Your Honour. Among them were a few members of the Army and a member of the Police who had come back to the village subject to holiday leave and another person married into our village who was said to have affiliations with the underworld in Colombo. I was able to save my life that day due to the assistance of a few who were in the vicinity and a few others who were gathered near that shop, Your Honour, all those who assaulted me that day were drunk. One person who was passing by that assisted me, had gone to the nearest Police checkpoint to report this matter but the Police never arrived. Instead, he

was told to ask me to report to the police and lodge an entry on the next day. When I proceeded to the Police the next day, my complaint was taken down on a piece of paper torn off a book which was kept in another book to write down what I said. Thereafter I was told that it was my fault and that it was my fault to walk over to a place where they were drunk and that I was still insane and stated “your madness will be fixed soon, you’ll see.” Thereafter they asked me whether I would prefer a settlement with those who assaulted me as there was no such special reason for a dispute. I agreed and following the reconciliation, I went back home. That day when I was going home after visiting the shop, I had to take a by-lane for around 500m. On one side of that road were two lands with no residents while the other side of the road was a completely abandoned area: At that point, someone came out from one of those two properties and asked me to switch off my torch and then pointed his torchlight at me. Another two individuals held me and I was asked what my name was to which I responded, Kalu Banda Abeykoon. Then they said “alright” and took me to that abandoned land. Thereafter they threatened me to kneel down and to lock my hands on top of my head. I asked why they were trying to kill me to which they said “you won’t be killed; we have something better to get you to do. You better do that.” Then I asked what I should do. Then they said that I should go to the police and make a statement about the incident of my wife and to admit that it was committed by me and that if I do not do so, that they will go to my house, rape and kill my younger sister and that they will kill my parents and bury them as well. They said that if I tell this to anyone that they’ll definitely do that and once I come out, they’ll kill me as well. At that point I was completely helpless because even the police didn’t support me and all what they did was call me mad or an imbecile. When I was so helpless there was nothing, I do or resort to. I’m a soldier who has fought for my Country at the cost of my very own life. I had nothing else to do to save my innocent sister and parents, Your Honour, so I went to the Anuradhapura Police station and informed Mr. Bulankulame the Attorney at Law that I wish to surrender to the police in relation to the disappearance of my wife. Then he called the OIC of the Wilachchiya police station over the telephone and surrendered within the Court Premises itself Your Honour. Then thereafter I was directly taken to the premises where my house was located and I was asked to admit a specific place. There was a pit dug behind my house. I was told that they had dug that pit many times and there was an iron rod like this. I was asked to pick it up and give it. So, I did pick it up by hand and gave it to them. Thereafter they took me away and locked me up at the Police Station. The next day evening I was taken there again. There were



many rocks that were removed among which was a massive rock that took eighteen individuals to pull out with ropes. At that moment a judge from a lower court was also there. Thereafter I was taken back to the police station. Then I was shown various items and asked to make a confession to the Magistrate that when a fight broke out between me and my wife, I hit her with that iron rod which resulted in my wife losing consciousness due to which I got panicked and decided to bury and hide her. If I had not made such a confession, they said that they'll imprison my parents and sister as well. At this point, I was being pressurized and under duress by two parties. I was extremely helpless. There was nothing I could do. When there was nothing, I could do, the judge informed me that this confession could make me guilty and convict me. I myself knew it, Your Honour. Despite the Judge explaining the gravity of my confession, there was nothing I could do. With consideration to my innocent sister's life, innocent mother's life, and innocent father's life, I decided to admit and take responsibility for this crime. I was never killed in the Army. I'm actually not guilty, My Lord.



Postmortem Report

Inquest No- BR 1763/2005 Place- Anuradhapura Courts- MC, Anuradhapura

Date- 2005.11.23 Case No- 1763/2003

Name of Deceased Person - Podi Menike

Date and Time of Death - Not known.

Name of Medical Officer who conducted the Examination- Dr. Rajeeva Polonowita

Date and time of Postmortem Examination- 2005.10. 08

Place of Examination - General Hospital, Anuradhapura

1. Examination of the locus (Site and position of body)	Acting on the order of magistrate Anuradhapura, I visited the scene of suspected crime, No. 63, Gulupettawa, Pemaduwa in the Wilachchiya Police area. An area identified by the alleged suspect before the Hon. Magistrate, was excavated and a partly decomposed body was recovered lying on the left side with knees and hips bent. The body was lying 1.21 meters deep from the ground level. The body was transported to the mortuary General Hospital, Anuradhapura by the Wilachchiya Police.
2. External Examination of the body (clothing, nourishment, colour, marks and products of the disease, etc.)	Body of a female

Postmortem examination

The body was subjected to a complete Radiological investigation prior to dissection.

X-rays no. 33208 - Did not show any fractures.

At the post-mortem examination, the following ante-mortem injury was found,

1. A laceration about 6.0 x 2.0 cm with a surrounding scalp contusion was seen over the right parietal region of the head.
2. There was no underline fracture seen on the skull.

3. Height (By measurement)	The length of the body was 5'1
4. Age	Between 17 and 22 years (Estimated)
5. Sex	Female
6. Eye and pupils	Decomposed
7. Length, colour and condition of hair	Decomposed
8. Position and condition of tongue	Decomposed
9. Number of tooth (Complete, Incomplete, peculiarities)	Complete. But upper 3rd molar teeth have not fully erupted
10. Signs of death (Record temperature where necessary)	
Primary flaccidity Rigor Mortis Hypostasis Putrefaction	The body was in state of advanced mummification and decomposition. All internal organs were decomposed and could not be identified.
	

11. Condition and contents of hands and nails	
12. Natural openings (especially with reference to the presence of foreign substances, poisons, presence or absence of the signs of virginity and recent injury about the parts)	
Nose, Mouth and Ears Urinary and Sexual	
13. Neck Soft tissues and blood vessels of neck, and cervical vertebrae (special attention to strangulation.)	
14. Head i. Soft parts covering it ii. Bones of the skull iii. Membranes and sinuses of the brain iv. Brain substance and ventricles v. Blood vessels of brain	
15. Spinal Cord	

16. Thorax i. Soft parts covering it ii. Bones (ribs, sternum, vertebrae) iii. Chest cavity (position of organs, contents of pleural cavities) iv. Pericardium and its contents v. Heart (cavities and contents, valves myocardium) vi. Coronary vessels vii. Large blood vessels viii. Larynx, trachea, and bronchi (condition and contents) ix. Pleura and lungs x. Gullet	
17. Abdomen i. Contents, vessels, and position of organs ii. Peritoneum iii. Diaphragm iv. Liver and Gall Bladder v. Spleen vi. Stomach (condition and contents) vii. Duodenum, jejunum, ileum viii. (condition and contents; where relevant passage of food) ix. Large Intestines (conditions and contents) x. Pancreas xi. Kidneys xii. Supra-renal glands	

18. Pelvis i. Urinary bladder prostate (condition and contents) ii. Generative organs iii. Blood vessels iv. Vertebrae and pelvic bones	Within the pelvis region of the body, several bone fragments could be identified as ribs, parts of skull, long bones and parts of pelvis of an infant. Possibly those of an unborn infant of around 7 months, depicting that the deceased woman would have been pregnant at the time of her death.

Cause of Death and Other Relevant Opinions

Cause of Death - There are features of an assault with a blunt weapon over the head. But due to advanced decomposition of the internal organs, especially the brain, the exact cause of death could not be established. Considering the circumstances of burial, (i.e. clandestine disposal of the body) which suggest a high likelihood of criminal involvement, the most probable causes of death would be;

1. Concussion of the brain and subsequent complications of that initial injury following an assault with a blunt weapon.
2. Suffocation due to burial, while being unconscious after been assaulted with a blunt weapon.



Confession made under Section 127 of the Code of Criminal Procedure

Magistrate – Hon. Merril Samarakone

Suspect – Abeykoon Mudiyanseelage Kalu Banda aka Upali

Case No – 1237B/2003

Date – 19.09.2003

Place – Anuradhapura Magistrates Court

Time – 9.30 AM

Abeykoon Mudiyanseelage Kalu Banda aka Upali .28 Years old. Did a job. Served in the Army. As an advisor. Regular force. Address: No 273/49, Buwipeththeama, Pemaduwa. Your Honour I was possessed by a paranormal entity. So, I deserted the Army. Then I lived as a farmer. Then my possession (of a paranormal entity) became worse. No amount of medicine worked. I had been looking for marriage proposals during this time. Then, I met Subasinghe Herath Mudiyanseelage Podi Manike through a relative of mine. After four days of acquaintance, Podi Manike and I got married amidst everyone's objection. Similar to me, she was possessed by a paranormal entity as well. While we were living together, we fought multiple times. My wife was also bearing a child at the time. Parents and Siblings told to get a divorce. I told her about this. She wanted to hand over the child to me after giving birth and go abroad. She even obtained Visa for six years. She has been married once before she got married to me. She told me about it five months into our marriage. She has had a child from the first marriage as well. That child, after having lived for two and a half years, had been taken to her home on the recommendation of the doctors at the Colombo General Hospital. I was told that the child passed, after his nasal tubes were removed. Because of this she did not have any desire to bear children anymore. When I asked her why she told me that the doctors had warned her not to bear children. Apparently, this was because she has a condition of producing yellow milk. When she told me this, she was heavily pregnant. I asked a few doctors, they said that we cannot abort the child. During this time, she did not act like a normal wife. She liked consuming rotten food. When she fights with me, she used to swallow pieces of glass and even safety pins. We used to fight a lot when that happens. During these fights we used to hit each other with everything and anything. I sought the opinion of our relatives on her mental condition. I was



told that the spirit in her body cannot be removed until the child was born. Then I went to a shrine nearby for help. I was given some kind of a powder to dissolve in water and wash our faces with. I took her to her home and told her parents to take care of her until the baby is born because of our frequent fights. Her parents did not like it. They told me that this marriage was not something that they approved of and to go to the person who set the marriage up. Me and my wife fought that day at her parent's house too. I told her parents that we frequently fight in this manner, and that her mannerisms are also different now. That she defecates into shopping bags. Then hides them in corners of the house. When I advise her not to do it, she fights with me. Then we went to the person who set us up. He also said he cannot take any responsibility for this matter. Then I continued to live in the house the way I can. One day we started to fight as usual. That day she was hit. By me. From that blow she passed away. Even though I tried for so long, she did not gain her consciousness. I was afraid. I took her body and put it into a pit which was already dug to mine clay, and I closed it. Then, I traversed the town, lying to everyone I encountered about what had happened. After some time, I heard that the Police had been troubling my parents and siblings. Thereby, I, after accepting the wrong on my own, presented myself before the law. That is all Your Honour.